

**State of New York
Monroe County Supreme & County Courts**

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In re: Matter of the Application for a.
Risk Level Determination Pursuant to.
Article 6-C of the Correction Law.
(Sex Offender Registration Act) as to:

Index No: None Provided by Clerk
Hearing Date: September 11, 2026
Before: Hon. Karen Bailey Turner, J.C.C.

JEFFREY BERNECKY,
NYSID No. OS6430

**MEMORANDUM OF LAW
IN SUPPORT OF A LEVEL TWO
RISK CLASSIFICATION**

Respondent, Pro Se.

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I. PRELIMINARY STATEMENT

This proceeding turns on a document nobody in this courtroom has read and a word the Board of Examiners of Sex Offenders has never proven. The document is Jeffrey Bernecky's federal presentence report — a report a federal probation officer was free to build from investigative records, supervision notes, third-party statements, and any other source federal rule and practice place no limit on, not merely a single police report. The Board did not offer this Court that report itself. It offered a Case Summary — the Board's own narrative account of what that report said, filtered again through the Board's own paraphrase, and now presented to this Court as though it were established fact. The word is "safety." Correction Law § 168-l(6) does not authorize a Level Three classification because an offender might reoffend. It requires clear and convincing proof that he presently threatens public safety. The Board has never offered that proof. It has offered a single, fourteen-year-old prior conviction and called that conviction, by itself, "compelling evidence" of a threat the Board never independently examined.

Respondent asks this Court to do two things, in this order.

First, decline to treat a federal presentence report — a document built under rules that expressly tolerate hearsay, that expressly permit a sentencing judge to leave disputed facts unresolved, and that this record now shows already contains real, checkable inaccuracies — as clear and convincing evidence of anything in a New York State courtroom, at a standard of proof the federal sentencing itself never applied. This is a threshold, document-reliability problem, and it should be resolved before the Court reaches anything else.

Second, recognize what the Board's own numbers actually show. Mr. Bernecky's Risk Assessment Instrument score is 70 points — squarely within the Guidelines' own Level One range. He reaches a presumptive Level Three only because RAI Override 1 fires on the bare fact of his 2012 federal conviction. That override proves one thing: that Mr. Bernecky has a qualifying prior conviction, which is the same fact that would support a Level Two classification he does not contest. It does not prove, and the Board never separately tried to prove, that he is a danger to anyone's physical safety. Nothing in either of his two convictions — both entirely digital, both entirely non-contact — shows that. Level Two already accounts for the risk the record actually establishes. Level Three should be reserved for a risk the record does not.

II. STATEMENT OF FACTS

A. The classification package, and what the Board's own numbers show

By notice dated July 30, 2026, this Court scheduled a risk-level classification hearing for September 11, 2026, following the recommendation of the New York State Board of Examiners of Sex Offenders. The Board's recommendation package — a cover memorandum, a Risk Assessment Instrument ("RAI"), a four-page narrative Case Summary, and a Sex Offender

Designation Form, all dated July 23, 2026 — is the entirety of what has been disclosed to Respondent and, per the Board's own cover memorandum, the entirety of "all relevant information considered by the Board."

The RAI scores Mr. Bernecky at 70 points, built from exactly three factors: age of victim under 11 (+30), a prior violent felony or sex crime conviction (+30), and recency of that prior conviction, less than three years before the instant offense (+10). Every other scored category on the instrument — use of violence, forcible compulsion, sexual contact with a victim, number of victims, duration of offense conduct, relationship with the victim, acceptance of responsibility, and conduct while confined or supervised — is scored zero. The RAI's own printed table places Level One at 0 to 70 points. The Board's Case Summary states, in these words: "Mr. Bernecky is assessed as a Level I (Low) risk." On points alone, the Guidelines classify Mr. Bernecky at the lowest tier the instrument recognizes.

The only reason this proceeding concerns a Level Three classification at all is RAI Override 1 — "Offender has a prior felony conviction for a sex crime" — which the RAI's own text states makes an offender "presumptively a Level 3." The Case Summary explains the Board's reasoning for that override in a single sentence: the prior conviction "automatically results in a presumptive Risk Level III, as this provides compelling evidence that he poses a serious risk to public safety that is not captured by scoring alone." That sentence — nothing else — is the entire evidentiary basis in the Board's own package for the conclusion that Mr. Bernecky presently threatens public safety. The Case Summary also invokes a Board "Position Statement" dated June 1, 2012, for the proposition that Mr. Bernecky "has demonstrated the inability to manage his sexual urges." That document is referenced as "attached" to the Case Summary; it addresses, on its own face, only the scoring of RAI Factors 3 and 7 in child-pornography cases and a wholly separate override —

Override 4, the clinical mental-abnormality override — which the Board has never invoked here. It says nothing about Override 1 and nothing about general dangerousness.

B. A record without violence, contact, or a weapon

Mr. Bernecky's criminal history consists of two federal convictions, six years apart, both exclusively for possessing and distributing child pornography over the internet — 18 U.S.C. §§ 2252A(a)(1) and 2252A(a)(5)(B) in 2012; 18 U.S.C. §§ 2252A(a)(5)(B) and 2252A(b)(2) in 2018. Neither conviction charges or alleges any physical contact with a child, any use of force, any weapon, or any attempt to arrange or solicit contact with a minor. The instant offense was detected when a supervising federal probation officer found an unauthorized smartphone during a routine home visit; Mr. Bernecky, after initially misstating whose phone it was, admitted it was his and admitted what it contained. A forensic review recovered roughly 200 images and 25 videos. The RAI's own scoring reflects the same reality the Board's narrative describes: every factor that would register violence, forcible compulsion, or physical contact with a victim is scored zero.

C. Respondent disputes three statements the Case Summary attributes to him

Three statements in this record are attributed to Mr. Bernecky. Respondent disputes that he made the first, disputes the label the Case Summary applies to the second, and disputes both the reliability and the present-day significance of the third.

The 2010 statement Mr. Bernecky disputes making. The Case Summary reports that, in a 2010 interview, Mr. Bernecky said he "used a desktop recorder to record children he viewed on webcam engaging in sexual acts," and separately said that if he "did not have something to look at (child pornography), he might be tempted to do something (have sexual contact with an actual child)." **Mr. Bernecky disputes making this statement.** Neither sentence appears, in any form, in

the government's Supplemental Sentencing Statement (Ex. A) or in any other federal filing available to Respondent; the only source anywhere in this record for either sentence is the Board's own paraphrase of what it understood a probation officer's report to say the interview contained — not a transcript, not a recording, not the interview itself. What Mr. Bernecky actually said in that 2010 interview cannot be determined from this record; only the interview recording or transcript, which the government has never produced here, could resolve it. Argument A develops, as an independent and affirmative reason to credit that dispute, why the government's own charging decisions in both of Mr. Bernecky's federal cases are difficult to reconcile with this statement having been made as described.

1. The 2017 disclosure the Case Summary mislabels "sexual contact."

During a 2017 polygraph-linked disclosure, per the Case Summary, Mr. Bernecky described what the document itself terms "sexual contact" with two individuals — a 9-year-old boy in 2005, when Mr. Bernecky was sixteen, and a 12-year-old boy in 2007, when he was eighteen. The conduct the Case Summary actually describes is narrower than the label it gives that conduct: on a day-camp bus, the 9-year-old "tried to sit on his lap," and at an after-school program, the 12-year-old "sat down on his back" — ordinary, child-initiated contact during ordinary camp and after-school activity, which the Case Summary does not describe Mr. Bernecky as having done, arranged, or sought out. A child climbing onto an adult's lap or back during ordinary horseplay is not "sexual contact" in any sense that term ordinarily carries; the label belongs to the Case Summary, not to the conduct it describes. Neither incident resulted in any charge, arrest, or contemporaneous allegation of wrongdoing at the time. Both were disclosed by Mr. Bernecky himself, years later, to his own treatment providers, as part of his own treatment engagement — not detected, not reported by any parent, employer, or child. The RAI itself does not score either one:

Factors 2, 3, and 7 are all zero. Argument A separately addresses why this specific disclosure — made in the course of Mr. Bernecky's own sex-offender treatment and reaching this record through a privileged clinical file the Board has no lawful way to obtain or verify — sits at a link in the record's chain of custody the Board cannot independently check.

2. A related account, no more reliable than the others — and unrepeated for nineteen years

The government's 2012 filing also states that Mr. Bernecky, as a 17-year-old YMCA employee, "kids... would climb on him at the pool and he would get sexually aroused because they would rub on him." Ex. A at 3. That sentence is not a quotation of Mr. Bernecky's own words — it appears without quotation marks, and the government's own filing sources it to "PSR at 70," the identical presentence report Argument A already argues cannot be trusted as a source of fact in this proceeding. The government's filing is not an independent witness to what Mr. Bernecky said; it is a second paraphrase of that same document — one layer removed from the Case Summary's own paraphrase, not a firmer or independently verified source than it. Mr. Bernecky's own defense sentencing memorandum in the same case (Ex. E), filed by his own counsel the same month, addresses his background, his own disclosed history of childhood sexual abuse, and his treatment record in detail across eleven pages — and says nothing about this topic anywhere in it. That silence resolves nothing on its own, but it belongs before this Court rather than left unmentioned. Even accepting the account exactly as the government's filing describes it, no comparable incident, statement, or allegation of any kind appears anywhere in this record from any point after 2007 — nineteen years, spanning both of Mr. Bernecky's convictions and his current supervision. Section 168-1(6) asks whether Mr. Bernecky presents a threat to public safety now, not whether something like this occurred once, nearly two decades ago, and was never repeated. See Argument B.2, *infra*. This account also does not obviously reconcile with the Case Summary's later, more specific 2017

account — two named individuals, two dated incidents, a camp bus and an after-school program, no pool. No document available to Respondent resolves whether the two accounts describe the same conduct, recalled with different specificity years apart, or something else. Respondent does not ask this Court to resolve that question in his favor. He asks the Court to notice that the question exists, against a Case Summary that presents its own account with no such uncertainty at all.

D. Supervision, treatment, and the record Mr. Bernecky has built since

Mr. Bernecky was, at the time of the instant offense, actively engaged in sex-offender treatment — weekly group and monthly individual sessions — and remained in that treatment through the period the Board's own Case Summary describes. A 2017 sexual-history polygraph examination, following the disclosure described above, showed no deception, and his treating counselor reported that he "took accountability for his actions and showed insight into his offending behavior, his arousal to children, and the risks associated to the possibility of reoffending." Contemporaneous treatment notes from mid-to-late 2017 describe decreasing deviant fantasies and decreasing masturbation, and identify stress, not any renewed interest in child pornography, as his primary reported trigger.

Mr. Bernecky has been on federal supervised release since his release from federal custody on July 31, 2026, and is currently serving a ten-year term of that supervision. He remains subject to ongoing probation supervision, mandated sex-offender treatment, and comprehensive computer and internet monitoring administered through the federal Computer and Internet Monitoring Program, under which the United States Probation Office is authorized to install monitoring software on any device he uses and to be notified of any impermissible or suspicious activity. The conditions the sentencing court imposed reflect the seriousness with which federal supervision

treats Mr. Bernecky's history; they are not nominal, and Mr. Bernecky will remain under this same close federal supervision, in the community, for at least a decade from his release date.

E. The federal record contradicts the Board's own Case Summary

The Board's Case Summary is not a copy of the federal presentence report. It is the Board's own narrative, built from the Board's own reading of a document the Board never attaches, never quotes with a page citation, and never identifies with any pinpoint reference anywhere in its four pages. The federal court record itself — including the government's own contemporaneous filings — shows that narrative to be, in material respects, inexact, and in at least one respect internally impossible on its face.

The Case Summary reports that Mr. Bernecky, in a 2010 interview, "stated that he could not help what he was doing, and he wished he could change it." No document in the federal record uses that phrasing. The government's own Supplemental Sentencing Statement (Ex. A) quotes Mr. Bernecky's actual words, in quotation marks, from the same interview: he "can't help it. I wish I could change it." Ex. A at 3. He separately stated, in the same interview, that he "tried to slow down" but "can't stop" — a second, distinct admission the Case Summary's single paraphrased sentence does not capture at all. *Id.*

The Case Summary states that Mr. Bernecky, in the 2012 offense, "shared over 62,000 files." That same Supplemental Sentencing Statement — the government's own contemporaneous filing, and the closest document of record to whatever the Case Summary means by "the PSR" on this point — states he was "sharing over 6,200 files." Ex. A at 3. The discrepancy is not a rounding difference. It is a full order of magnitude.

The Case Summary attributes its description of the 2017 polygraph-linked disclosure — two specific, dated incidents, at a camp bus and an after-school program, involving two named ages

— to paragraphs of "the revised PSR." The record shows that Mr. Bernecky's own counsel specifically objected, in an Amended Sentencing Statement (Ex. B), to those exact paragraphs — Paragraphs 79 through 81 of the revised PSR — as irrelevant and prejudicial, and asked that they be stricken. Ex. B at 2. No document of record shows whether the sentencing court ever ruled on that objection, ruled it unnecessary because it would not affect sentencing, or simply never reached it — a silence Federal Rule of Criminal Procedure 32(i)(3)(B) expressly permits, as discussed below. The absence of any further objection elsewhere in the 2018 case's record is not a concession that the rest of the PSR is accurate. That case proceeded on a Rule 11(c)(1)(C) plea agreement for a stipulated sentence of 120 months — the statutory mandatory minimum for a repeat offense under 18 U.S.C. § 2252A(b)(2) — meaning the sentence itself was fixed by agreement regardless of the outcome of any objection to the PSR's content. Ex. C at 2. There was no incentive to litigate disputed PSR passages that could not change a sentence already agreed to in advance; counsel's silence as to any particular passage reflects that reality at least as plausibly as it reflects agreement that the passage is accurate.

The Case Summary further states that the instant offense — which the record elsewhere places in December 2017, with charging documents filed in 2018 — is described by, among other sources, "the Federal Presentence Investigation Report (PSR) revised on April 26, 2011." The Case Summary offers no explanation for how a report revised in April 2011 could describe an offense that had not yet occurred, and the federal record confirms no PSR of any kind was even issued in either of Mr. Bernecky's two federal cases until November 2011 at the earliest. Ex. A at 1.

This is what happens, demonstrably, when a document built for one court's sentencing purpose is read once, summarized once, and summarized again for a purpose it was never built to

serve. A record assembled that way cannot carry the clear-and-convincing burden the Board's recommendation depends on.

III. ARGUMENT

A. THE BOARD'S RECOMMENDATION RESTS ON A FEDERAL PRESENTENCE REPORT THAT THIS RECORD SHOWS TO BE AN UNRELIABLE SOURCE OF FACT

A federal presentence report is built to help one judge sentence one defendant in one federal proceeding. It is not built, and Congress never intended it, to serve as a source of adjudicated fact for a different court, in a different proceeding, applying a different and higher standard of proof, years later. That distinction is not academic here. It is the entire reason the Board's Case Summary — three layers removed from the underlying investigative record, containing at least the specific, checkable inaccuracies described above — cannot carry the clear-and-convincing burden Correction Law § 168-n(3) places on the People.

1. The rules that build a federal PSR permit exactly the kind of unreliability this record shows.

No formal evidentiary limits govern what goes into a federal presentence report, and no statute or rule confines a probation officer to police or investigative reports; a PSR is free to draw as well on supervision notes, third-party statements, and any other source the governing rule and practice do not limit. As the Second Circuit has explained, "[n]o formal limitations inhibit the collection of information for such reports," and "[t]he reports frequently contain hearsay and information not relevant to the crime charged." *United States v. Charmer Indus., Inc.*, 711 F.2d 1164, 1175-76 (2d Cir. 1983). "[T]he report may well contain hearsay statements that are not subject to cross-examination... or information bearing no relationship to the crime." *Id.* at 1171. This is not an oversight in how presentence reports are prepared; it is by design, and Federal Rule

of Evidence 1101(d)(3) confirms it — the Rules of Evidence do not even apply to the sentencing proceeding a PSR is written for, let alone to a proceeding it was never written for at all.

2. A defendant in Mr. Bernecky's position was never positioned, at any stage of these two cases, to check his own PSR against the record it claims to describe.

Federal Rule of Criminal Procedure 32 requires disclosure of the presentence report to the defendant and defense counsel at least 35 days before sentencing, Fed. R. Crim. P. 32(e)(2) — but disclosure to counsel is not the same as the defendant personally holding or independently re-checking his own copy. Mr. Bernecky was released on conditions, not detained, through his 2012 sentencing in the first case. In the second case, he was taken into custody in December 2017, in connection with the violation and new charge that became that case, and remained detained through his June 2018 sentencing. During that pretrial detention, a defendant does not end up in personal possession of his own PSR for a practical reason: because a federal pretrial detainee held under a U.S. Marshals Service contract is typically confined in a local jail it is a nearly universal defense protective practice not to hand a client a personal copy, or let him privately possess one, in that setting — because what a PSR describes about him becoming known to other detainees can get him killed. Once sentencing was complete and Mr. Bernecky moved into actual Bureau of Prisons custody to serve his sentences, that same concern became a formal rule. The Bureau prohibits an inmate from retaining a copy of his own presentence report, precisely because, as the Bureau's own policy explains, other inmates pressure inmates for copies of exactly this kind of document, and inmates who produce or refuse to produce them "are threatened, assaulted, and/or seek protective custody." BOP Program Statement 1351.05, *Release of Information*, at 17 (Ex. D). The Bureau's rule does not create this safety concern; it confirms, from an official source, that the concern counsel already acted on pretrial was real. The practical result, at every stage, is the one *Charmer* itself anticipated, for a related reason: "there is no requirement that the defendant voice his

objection to any statement with which he disagrees," and "in a significant number of cases, the defendant does not even request disclosure" of the report in the first place. *Charmer*, 711 F.2d at 1175-76 (citing Fennell & Hall, *Due Process at Sentencing: An Empirical and Legal Analysis of the Federal Reform*, 93 Harv. L. Rev. 1615, 1641 n.141 (1980)). Even where disclosure to counsel occurs exactly as the rule requires, a defendant in Mr. Bernecky's position never personally holds or independently re-checks the very document the Board now asks this Court to treat as established fact — a safety-driven barrier at every stage, not a failure of diligence on his part.

Nor does a sentencing court's silence mean a disputed fact was ever proven. Rule 32(i)(3)(B) permits a federal sentencing court, confronted with a disputed portion of the presentence report, to decline to rule on it entirely — to "determine that a ruling is unnecessary either because the matter will not affect sentencing, or because the court will not consider the matter in sentencing." Fed. R. Crim. P. 32(i)(3)(B). And even where a defendant's challenge to a specific PSR statement succeeds, that "does not mean the statement is expunged from the report" — it "nevertheless remains in the report," available to be read, years later, exactly as if it had never been challenged at all. *Charmer*, 711 F.2d at 1175-76. A federal presentence report, in other words, is a document that can contain unproven, uncontested, unresolved hearsay by design — and Correction Law § 168-n(3) requires the People to prove Respondent's classification by clear and convincing evidence, not to reproduce a document that was never held to any evidentiary standard at all.

That gap in standards is not rhetorical. The Second Circuit has repeatedly confirmed that disputed sentencing facts are found, at most, by a preponderance of the evidence. See *United States v. Vaughn*, 430 F.3d 518 (2d Cir. 2005); *United States v. Garcia*, 413 F.3d 201 (2d Cir. 2005). For the portions of a presentence report a defendant never disputes at all, the ordinary federal practice is starker still: the sentencing court "may accept" an undisputed portion "as a finding of fact," Fed.

R. Crim. P. 32(i)(3)(A), without any evidentiary showing preceding that acceptance. An undisputed PSR fact, in the ordinary case, is not a fact the government proved and the defendant failed to rebut — it is a fact nobody was ever required to prove at all. A federal presentence report can therefore stand behind facts proven, at best, by a preponderance, and, in a meaningful share of cases, by nothing whatsoever. Correction Law § 168-n(3) requires more. It requires clear and convincing evidence — the same rigorous standard this Court will apply at Respondent's own hearing. A document built at a lower standard, or at no standard at all, cannot without more satisfy a higher one simply because it arrives wrapped in the Board's own paraphrase.

3. This is not the New York State case-summary practice *Mingo* excused from foundation.

Reliable hearsay is admissible at a SORA hearing if, "based on the circumstances surrounding the development of the proof, a reasonable person would deem it trustworthy." *People v. Mingo*, 12 N.Y.3d 563 (2009). *Mingo* itself excuses ordinary New York State case summaries and presentence reports from any separate foundation showing precisely because "such documents are created under statutory mandates and their origins and function are well-known to SORA courts." That rationale describes New York State probation officers preparing New York State presentence reports, under New York State procedures, for New York State sentencing judges — the very process a Monroe County court sees case after case and knows how to evaluate. It does not describe a federal presentence report, prepared by federal probation officers under an entirely different statutory scheme, for a federal sentencing judge, applying federal Sentencing Guidelines conventions this Court does not administer in the ordinary course, and then filtered a third time through the Board's own further paraphrase before it ever reaches this record. Nothing about that compound structure — a Board summary, of a federal probation officer's summary, of an investigative record — is "well-known" to this Court in the way *Mingo*'s excusal contemplates.

And unlike the ordinary case summaries *Mingo* addressed, the Board's Case Summary here contains no pinpoint citation to any PSR page anywhere in its four pages — nothing that would let this Court, or Respondent, check the Board's paraphrase against its source even if the source were available. The specific inaccuracies detailed in the Statement of Facts above are not theoretical risks of that structure. They are what that structure has already produced.

4. The record already shows what that structure produces, in a form that can be independently checked.

The Case Summary attributes to Mr. Bernecky a statement that, if actually made, would describe conduct — recording children on webcam engaging in sexual acts — chargeable as production of child pornography under 18 U.S.C. § 2251(a), carrying a mandatory minimum of fifteen years' imprisonment, and twenty-five years given a prior child-pornography conviction. *Id.* § 2251(e). Mr. Bernecky disputes making that statement. The government's own charging decisions supply an independent, checkable reason to credit that dispute: prosecutors do not extend a plea to mere possession, in either of Mr. Bernecky's two federal cases, while holding an admission that would support a production charge carrying that kind of mandatory minimum. No production charge was ever filed against Mr. Bernecky, in 2012 or in 2018. That silence does not conclusively prove the attributed statement is inaccurate — Respondent has not obtained the underlying interview recording or transcript, and states that limitation candidly rather than overclaim it — but it is real, record-grounded evidence pointing the same direction as Mr. Bernecky's own denial, and it is exactly the kind of risk the distinction above warns of: a statement passed through the Board's paraphrase of a probation officer's own characterization of an unrecorded, unproduced interview, attributed to Respondent without a single word of it ever independently checked against its actual source.

5. The Board has no lawful way to verify one link in this record's chain of custody.

The Case Summary's account of the 2005 and 2007 incidents traces back to a disclosure Mr. Bernecky made in the course of his own sex-offender treatment, to his own licensed clinical social worker, in a treatment-program polygraph setting, for a treatment purpose. That clinician's records are protected by New York State's social-worker privilege, CPLR 4508 — a privilege that belongs to Mr. Bernecky, not to the treatment provider, the Board, or the People, and that only Mr. Bernecky can waive. Whatever authorization Mr. Bernecky gave his treatment provider to speak with his federal supervising officer was given for that purpose, supervision compliance, not for use in a New York State SORA proceeding years later, and nothing in this record shows he has ever authorized disclosure of his treatment communications for that different purpose. The material nonetheless reached a federal probation officer who was not the clinician Mr. Bernecky spoke to, who wrote it into a presentence report for a different case, years later, which the Board then paraphrased into the Case Summary now before this Court. Respondent flags this candidly as an argument this Court would be among the first to consider, not settled law — no reported SORA decision has yet addressed a treatment-privilege objection of this kind, and the scope of any waiver Mr. Bernecky gave his federal supervising officer is a genuinely open question this record does not resolve. But the structural point holds regardless of how that open question is answered: the Board has no lawful access to the one record that could actually confirm or refute what the Case Summary says Mr. Bernecky told his treatment provider, because the privilege over that record belongs to Mr. Bernecky, and nothing in this record shows he has ever given it up for this purpose. Whether that ever changes is his choice to make — not an assumption the Board is entitled to make for him.

6. The relief this requires is narrow, and it is one *Mingo* already authorizes.

Respondent does not ask this Court to import a criminal trial into a civil proceeding, and does not ask for anything the Court of Appeals has already held due process does not demand. *See*

People v. Watts, 2024 NY Slip Op 00926 (Ct. App.) (existing SORA safeguards — notice, counsel, disclosure, and an opportunity to object and present evidence — adequately balance the interests at stake). Respondent asks only what *Mingo* itself already provides: where a specific hearsay assertion is challenged, the proponent must establish its reliability "either through a pre-hearing affirmation, an offer of proof, or by testimony from a witness with knowledge of the internal procedures." *Mingo*, 12 N.Y.3d at 573-74. As to each of the specific, unattributed conclusions identified above — the "compelling evidence... not captured by scoring alone" sentence, the "inability to manage his sexual urges" characterization drawn from a document that does not address Override 1 at all, the disputed 2010 statement, the mislabeled 2017 disclosure, and the specific factual assertions this record now shows do not match their own claimed federal source (Ex. A; Ex. B) — Respondent respectfully requests that the Court require the People to establish that foundation before giving those assertions the weight the Board's recommendation depends on, and Respondent objects, and preserves that objection, to any reliance on them absent such a showing.

B. RESPONDENT SHOULD NOT BE CLASSIFIED A LEVEL THREE OFFENDER BECAUSE, ON THIS RECORD, OVERRIDE 1 PROVES ONLY THAT HE MIGHT REOFFEND — NOT THAT HE THREATENS PUBLIC SAFETY

As demonstrated by the Board's own explanations, Override 1 answers only *one* question: whether Mr. Bernecky might commit another offense. Correction Law § 168-l(6) asks a second, independent question the Board never answered: whether he threatens public safety. The Board proved the first. It never even attempted the second.

1. *The statute requires proof of two separate things, and the Board has offered evidence of only one*

Correction Law § 168-l(6) states the standard for a Level Three classification in conjunctive terms: a court may so classify an offender only "[i]f the risk of repeat offense is high *and* there exists a threat to the public safety." Section 168-l(5) directs the Board to develop guidelines assessing both of those things separately — "the risk of a repeat offense by such sex offender and the threat posed to the public safety." Two elements, joined by "and."

Intuitively, the two can sound like the same question asked twice: if he is likely to do it again, isn't that itself the danger? It is not, and the difference is not a technicality. "Risk of repeat offense" asks how likely an offender is to engage again in the conduct that brought him to this proceeding. "Threat to public safety" asks something different: what happens to another person if he does. Those two questions come apart precisely where an offender's conduct, however likely to recur, has never once involved physical contact with anyone. A person can be genuinely likely to repeat a course of conduct society rightly condemns without that conduct, repeated, ever placing another person's body in danger. Mr. Bernecky's own record makes the distinction concrete rather than abstract: his conduct in both convictions was accessing images, alone, on a device. A high likelihood that he does that again is a real and serious finding. It is not, by itself, a finding that anyone is physically endangered by it. The RAI's own architecture already reflects this same distinction: it scores an offender's use of violence, forcible compulsion, and physical contact with a victim as questions entirely separate from his criminal history, because the Guidelines themselves treat "will he act again" and "is anyone in physical danger if he does" as different questions that can have different answers.

That is an as-applied conclusion, not a claim about what a prior conviction can ever prove. An offender with a documented history of violence or contact offending — a prior conviction for rape, or for repeatedly molesting a child — presents a different case entirely: the same override

could reasonably support both elements of § 168-l(6) at once, and the showing needed to overcome that presumption would be correspondingly higher. That is not this case. Nothing in either of Mr. Bernecky's two convictions, or anywhere else in this record, involves violence, force, or contact with a child.

The statute's text confirms the Legislature meant to ask both. Courts do not read statutory language to render any part of it superfluous — "[w]ords are not to be rejected as superfluous where it is practicable to give each a distinct and separate meaning." *Leader v. Maroney, Ponzini & Spencer*, 97 N.Y.2d 95 (2001) (quoting *Cohen v. Lord, Day & Lord*, 75 N.Y.2d 95, 100 (1990)). If "risk of repeat offense" and "threat to public safety" meant the same thing, the Legislature would have written one element, not two, and Level Two — which already requires proof that the risk of repeat offense is at least moderate — would carry the same practical consequences as Level Three. It does not. Level Three alone requires quarterly, in-person address verification with local law enforcement, Correction Law § 168-h — Level Two offenders verify in person only once every three years, Correction Law § 168-f — and Level Three alone discloses the offender's place of employment to the public, Correction Law § 168-l(6)(c). The Legislature built two different tiers with two different consequences because it built two different findings.

Override 1 is not statutory text. It is the Board's own Guidelines mechanism, and its language asks only whether "the offender has a prior felony conviction for a sex crime" — nothing more. The Board's own explanation for why that single fact justifies a Level Three finding here is the sentence already quoted in the Statement of Facts: the prior conviction "automatically results in a presumptive Risk Level III, as this provides compelling evidence that he poses a serious risk to public safety." That sentence does not describe an independent public-safety finding. It describes the Board treating the very same fact that satisfies "risk of repeat offense" — the existence of a

qualifying prior conviction — as if it also, automatically and without more, satisfied "threat to public safety." Nothing else in the Board's package speaks to the public-safety element specifically. No psychological or psychiatric evaluation appears anywhere in the record. No actuarial risk instrument beyond the RAI itself was administered. The single document the Case Summary cites for reinforcement — the Board's June 1, 2012 Position Statement — does not address Override 1 at all; on its own face, it addresses only the scoring of RAI Factors 3 and 7 in child-pornography cases and the entirely separate clinical override the Board has never invoked here. Respondent accepts that Override 1 correctly establishes the "risk of repeat offense" element on this record; his challenge is narrower, and precise: the Board has asked that same fact to do a second job — stand in, without any independent showing, for a finding § 168-l(6) requires the Board to make on its own.

2. *Respondent's entire history is non-contact and digital — precisely the record Level Three's heightened measures were never shown to address*

Respondent does not dispute, and does not ask this Court to minimize, that his record gives real cause for concern that he may reoffend. He asks this Court to recognize what that record does not show: any indication, in either conviction, that he has ever posed or will ever pose a threat to anyone's physical safety. Both of Mr. Bernecky's convictions are passive, digital offenses — accessing and possessing images online. Neither involves force, a weapon, or any attempt to arrange contact with a child. That absence is not Respondent's characterization; it is the Board's own instrument, at zero, on every factor that measures it.

The Court of Appeals has itself recognized that "the relationship between an offender's child pornography offenses and the likelihood he or she will commit hands-on offenses is uncertain due to the continuing development of scientific research." *People v. Gillotti*, 23 N.Y.3d 841, 858

(2014). The record before that same Court included expert testimony that child-pornography offenders who have not committed a hands-on offense have "only a 4% rate of committing such hands-on offenses in the future" — a rate the expert described as "considerably lower" than the rate for other offender categories. *Id.* at 849. And two judges of that Court, including the then-Chief Judge, went further still, writing that the classification apparatus' more intensive monitoring tiers were built with a different offender in mind entirely: "the vast majority of [child pornography consumers] should be classified at level one. The resources that go into the more intensive monitoring of level two and level three SORA registrants can be more usefully expended in keeping track of so-called 'contact offenders' — for example rapists, and abductors of children." *Id.* at 866 (Smith, J., dissenting in part, joined by Lippman, Ch. J.). That is not the holding of *Gillotti* — the *Gillotti* majority itself held that "there is nothing inherent in child pornography offenses that convinces us to completely ignore the plain language of the guidelines," 23 N.Y.3d at 859, and rejected a categorical exemption for child-pornography offenders from ordinary point scoring. This Court need not adopt any categorical rule for child-pornography offenders — the Court of Appeals has already declined to adopt one. What it can do, as two of that Court's own judges already did, is weigh what Level Three's specific, heightened measures — quarterly public verification, employer disclosure — are actually calibrated to address, and ask whether this particular record shows Mr. Bernecky belongs in that category. It does not.

That gap between perceived and actual risk is not unique to two dissenting judges' own reading of the science. A 2022 empirical study of American adults' beliefs about child-pornography offenders — co-authored by a federal government researcher and published in a peer-reviewed journal — found that the public overestimates a child-pornography offender's risk of committing a future contact offense by roughly an order of magnitude: the public estimated that risk at 63%,

where the actual, measured rate across the cited studies runs from approximately 3% to 4%. Steel, Newman, O'Rourke & Quayle, *Public Perceptions of Child Pornography and Child Pornography Consumers*, 51 Archives of Sexual Behavior 1173, 1180 (2022). New York State's own Risk Assessment Instrument does not escape that same gap: the Board's own June 1, 2012 Position Statement — the same document the Case Summary invokes against Mr. Bernecky — concedes that scoring every child-pornography offender identically under the instrument's ordinary factors "produces an unintended, anomalous result," because "the majority of offenders convicted of child pornography offenses will be scored the same when there are clearly vast differences amongst these types of offenders." A record built on an instrument the Board's own Position Statement admits routinely conflates a heterogeneous population is not the individualized showing § 168-l(6) requires.

Justice Sotomayor, while serving as a judge with the Second Circuit Court of Appeals, explained this same error in a different area of law: "It is an inferential fallacy of ancient standing to conclude that, because members of group A are likely to be members of group B, then group B is entirely, or even largely composed of, members of group A." *United States v. Falso*, 544 F.3d 110 (2d Cir. 2008). Although *Falso* concerned the validity of a search warrant, the fallacy it names is particularly applicable here. Some consumers of child pornography go on to commit contact offenses; it does not follow that a given consumer of child pornography — and certainly not this one, on this record — should be treated as though he already has or will. Section 168-l(6)'s "threat to public safety" is a present, forward-looking question, not a question about what an offender has already done; the fallacy Sotomayor names infects an inference about the future exactly as much as one about the past.

3. *Even under a rebuttable presumption, Respondent has shown, by a preponderance, that he is not a threat to public safety*

To the extent this Court concludes that Override 1 does reach the public-safety element, Correction Law § 168-l(6) and *Gillotti* together supply Respondent a real avenue: a defendant may obtain a downward departure by identifying a factor of a kind, or to a degree, the Guidelines do not adequately account for, and proving the facts supporting it by a preponderance of the evidence — not clear and convincing evidence. *Gillotti*, 23 N.Y.3d 841. Respondent carries that burden here.

Mr. Bernecky is currently serving a ten-year term of federal supervised release, since his July 31, 2026 release, under conditions the sentencing court specifically calibrated to his history: continuous, comprehensive, privately-administered monitoring of his internet and computer activity through the federal Computer and Internet Monitoring Program, mandatory sex-offender treatment, and active probation oversight. He is, and will remain for at least a decade, under closer, more continuous supervision than any period covered by either of his two convictions. He has been, throughout the period documented in the Board's own Case Summary, actively and successfully engaged in sex-offender treatment — a 2017 polygraph examination showing no deception, a treating counselor's assessment that he "took accountability for his actions and showed insight into his offending behavior," and treatment notes describing declining deviant fantasies over the following months. The conditions imposed on him reflect the seriousness with which the federal courts already treat his history; they are not a formality, and they are the mechanism by which any future concern would be detected immediately, not years later.

This record also contains one assertion that must be met directly, not left for the Board to press on reply: the Case Summary's account that, in 2010, Mr. Bernecky told agents that without child pornography to view, he "might be tempted" to seek contact with a child. Mr. Bernecky disputes that he said this, for the reasons Argument A develops in full — the government's own charging decisions, in both of his federal cases, are difficult to reconcile with an admission that

would have supported a fifteen-to-twenty-five-year mandatory minimum production charge the government never brought. The Case Summary is not evidence the statement was made; it is the Board's own paraphrase of a document Respondent has never been permitted to see. Even assuming, solely for the sake of argument, that this record fairly reflects something said sixteen years ago by a 23-year-old who had not yet completed a single day of sex-offender treatment, Respondent has answered it since: seven years of sustained treatment specifically addressing his own arousal to children and "the risks associated to the possibility of reoffending," a 2017 polygraph examination showing no deception, and a treating counselor's own contemporaneous judgment that he had "took accountability for his actions and showed insight" into exactly that concern. Nothing in this record establishes that Mr. Bernecky presents no risk of viewing child pornography again. What it does establish is narrower, and different: no present or future risk that he will physically harm a child. To whatever extent this Court is not satisfied by either answer — the dispute over whether the statement was ever made, or the years of treatment that followed it — Respondent has a further, direct answer, addressed next.

4. A forensic evaluation — not speculation in either direction — is the proper way to resolve any remaining doubt

Correction Law Article 6-C contains no mechanism by which Respondent can generate his own clinical evidence to answer the "threat to public safety" question the Board's record leaves open — not funded, not unfunded, not at all. That silence stands in sharp relief against the one New York State proceeding structurally closest to what a "threat to public safety" finding actually represents. Mental Hygiene Law Article 10 civil management requires a diagnosed clinical condition before any dangerousness finding may issue, and expressly forbids a factfinder from concluding dangerousness "solely on the basis of the respondent's commission of a sex offense." MHL § 10.07(d). And Article 10 arms the very respondent SORA leaves without tools: "[i]f the

respondent is financially unable to obtain an examiner, the court shall appoint an examiner of the respondent's choice to be paid within the limits prescribed by law." MHL § 10.06(e). In the one place New York State has legislated how to prove — and how to contest — current sexual dangerousness by clear and convincing evidence, the respondent gets an examiner. Here, he gets nothing, unless this Court grants what County Law § 722-c already authorizes: by its own text, that statute extends its expert-funding mechanism to "article six-c of the correction law" — SORA proceedings by name — and at least one Appellate Division panel has confirmed that "a defendant in a SORA proceeding may be entitled to the appointment of an expert upon a court's finding that expert services are necessary." *People v. Linton*, 94 A.D.3d 962, 962-63 (2d Dep't 2012).

Respondent has moved separately for exactly that relief. This Court need not, and should not, decide this hearing on the theory that Mr. Bernecky's future dangerousness is unknowable. It is knowable, through the one mechanism designed to know it — and Respondent is the party asking for it. Put plainly: Respondent is not worried that Mr. Bernecky is going to disappear from supervision, and he is not worried that Mr. Bernecky is going to seek out and harm a child. But to whatever extent this Court is worried, that is precisely why Respondent has asked for a forensic evaluation — a conclusion only a forensic psychologist can actually reach, and the one piece of evidence this record currently lacks in either direction.

5. *Denying Level Three now does not close this question forever — Correction Law § 168-o gives the State a real remedy if real evidence of danger ever develops*

The conduct-specific conclusion Argument B.1 draws — that Override 1 supplies only the recidivism element on this particular record, see Argument B.1, *supra* — is not the last word on Mr. Bernecky either. A Level Two classification today is not a permanent judgment that Mr. Bernecky will never present a threat to public safety. Correction Law § 168-o(3) gives the District Attorney a direct, statutory mechanism to seek an upward modification later, on real evidence: where an

offender "has been convicted of a new crime" or has been found, after a proceeding under CPL § 410.70 or Executive Law § 259-i, to have "violated one or more conditions" of supervision, and where "the conduct underlying the new crime or the violation is of a nature that indicates an increased risk of a repeat sex offense," the District Attorney may petition to modify the level of notification upward — proved, again, by clear and convincing evidence. Correction Law § 168-o(3). That mechanism is not remote or theoretical for Mr. Bernecky. He is currently under close federal supervision — the same computer monitoring, the same probation oversight, the same mandated treatment already described above — and will remain under it for at least ten years from his release date. Any violation of that supervision would itself immediately supply § 168-o(3)'s predicate, and the same intensive supervision structure that supports a finding today that Mr. Bernecky is not a threat to public safety is precisely the mechanism that would surface any future violation and hand the State a clean, statutorily-authorized path to seek Level Three later, if it ever needs to. The safety valve here is not hypothetical. It is wired directly into the same supervision already keeping Mr. Bernecky monitored. This Court need not, and should not, treat today's classification as its only opportunity to protect the public. The statute the Legislature wrote does not treat it that way either.

IV. CONCLUSION

For the foregoing reasons, Respondent respectfully requests that this Court classify Jeffrey Bernecky as a Level Two sex offender. In the alternative, to the extent the Court is inclined to credit any specific factual assertion in the Board's Case Summary that Respondent has identified as unattributed, unfounded, disputed, or inconsistent with the underlying federal record, Respondent requests that the Court require the People to establish that assertion's reliability through the foundation *People v. Mingo* itself demands before relying on it, and Respondent preserves his

objection to any reliance absent that showing. Respondent further requests that the Court hold this matter open, or otherwise account, for the pending application under County Law § 722-c for a funded forensic risk evaluation, so that any residual question this Court may have about Mr. Bernecky's future dangerousness can be answered by the one form of evidence actually built to answer it. Respondent also renews and respectfully requests that this Court grant his pending application, under Correction Law § 168-n(3), for assignment of counsel, independent of the relief requested above.

Respectfully submitted,

Jeffrey Bernecky
Respondent, Pro Se
312 Lake Ave #7
Rochester, NY 14608
(585) 202-7634

NOTES

[1] Mr. Bernecky submits this memorandum pro se, with some assistance in its preparation, and does not believe he can adequately represent himself in a proceeding of this consequence. He has a pending application for assigned counsel under Correction Law § 168-n(3), which this filing neither withdraws nor waives; he files now given the stakes of a Level Three determination and the likelihood that counsel assigned near the hearing date would not have time to prepare a submission this detailed.

**State of New York
Monroe County Supreme & County Courts**

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In re: Matter of the Application for a
Risk Level Determination Pursuant to
Article 6-C of the Correction Law.
(Sex Offender Registration Act) as to:

Index No: None Provided by Clerk
Hearing Date: September 11, 2026
Before: Hon. Karen Bailey Turner, J.C.C.

JEFFREY BERNECKY,
NYSID No. OS6430
Respondent, Pro Se.

**CERTIFICATION OF JEFFREY
BERNECKY**

-----X
(Pursuant to CPLR 2106)

Jeffrey Bernecky, appearing pro se, certifies as follows:

1. I am the Respondent in this proceeding. I make this certification in support of my Memorandum of Law in Support of a Level Two Risk Classification, submitted in connection with the risk-level classification hearing scheduled for September 11, 2026. I have personal knowledge of the facts stated below, except where I state otherwise.

2. I was the defendant in both of the federal criminal proceedings referenced in my Memorandum of Law: *United States v. Bernecky*, No. 6:11-CR-06045 (W.D.N.Y.), and *United States v. Bernecky*, No. 6:18-CR-06018 (W.D.N.Y.). The documents identified below as Exhibits A, B, C, and E are filings from those two case dockets, which I obtained from my own case files and records and which I recognize as true and correct copies of the documents they purport to be.

3. **Exhibit A.** Annexed hereto as Exhibit A is a true and correct copy of the Government's Supplemental Sentencing Statement, filed January 13, 2012, in Docket No. 6:11-CR-06045, Doc. 24 (W.D.N.Y.).

4. **Exhibit B.** Annexed hereto as Exhibit B is a true and correct copy of the Amended Sentencing Statement, filed May 29, 2018, in Docket No. 6:18-CR-06018, Doc. 24 (W.D.N.Y.).

5. **Exhibit C.** Annexed hereto as Exhibit C is a true and correct copy of the Government's Statement with Respect to Sentencing Factors, filed April 24, 2018, in Docket No. 6:18-CR-06018, Doc. 18 (W.D.N.Y.).

6. **Exhibit D.** Annexed hereto as Exhibit D is a true and correct copy of Bureau of Prisons Program Statement 1351.05, *Release of Information* (as amended), a publicly available policy document of the United States Department of Justice, Federal Bureau of Prisons, governing, among other things, an inmate's access to and possession of his own presentence investigation report. I served terms of imprisonment in Bureau of Prisons custody under both of the federal judgments referenced above and was personally subject to this policy during that custody.

7. **Exhibit E.** Annexed hereto as Exhibit E is a true and correct copy of my Defendant's Sentencing Memorandum, filed January 6, 2012, in Docket No. 6:11-CR-06045, Doc. 23 (W.D.N.Y.), submitted on my behalf by my then-counsel, Adrian J. Burke, Esq.

8. At my prior New York State SORA risk-level classification hearing before this Court in 2016 — the proceeding that resulted in my Level Two classification, later affirmed on appeal in *People v. Bernecky*, 161 A.D.3d 1540 (4th Dep't 2018), lv denied, 32 N.Y.3d 901 (2018) — the counsel assigned to represent me appeared for the first time on the day of the hearing itself, with no advance opportunity to meet with me, review my case, or prepare. That same counsel later filed the appeal that became the Fourth Department's 2018 decision without my knowledge or consent. I state this from my own personal recollection of that proceeding. I am not aware of any docket entry or other record in this matter's files that independently documents it, and I offer it here as my own account, not as an adjudicated fact.

9. The Case Summary attributes to me, citing an unidentified document from my initial entry into the Bureau of Prisons, a report that I used hallucinogens, rarely, during the year before my arrest in my first case. I deny this attribution completely. I did not make that report, and I have never used hallucinogens. I make this denial based on my own personal knowledge of what I have and have not used and reported.

10. The Case Summary describes, using the label "sexual contact," two incidents from when I was a minor and a teenager: in 2005, when I was sixteen, on a day-camp bus, a 9-year-old child tried to sit on my lap; and in 2007, when I was eighteen, at an after-school program, a 12-year-old child sat down on my back. I disclosed both of these incidents myself, years later, to my own treatment providers, as part of my own treatment engagement — neither was detected or reported by any parent, employer, or child at the time, and neither resulted in any charge, arrest, or allegation of wrongdoing when it occurred. I did not initiate, arrange, or seek out either incident; each was a child climbing onto me during ordinary camp or after-school activity, not conduct I directed toward either child. I dispute that "sexual contact" accurately describes either incident as I disclosed it. That label was applied by the Case Summary, not by me, and I make this statement based on my own personal knowledge of what happened and what I disclosed, in both instances.

11. I submit this certification, including the statements above, and Exhibits A through E annexed to it, in support of my Memorandum of Law and my position that I should not be classified a Level Three sex offender.

I affirm this ____ day of _____, 2026, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

Jeffrey Bernecky
Respondent, Pro Se
312 Lake Ave #7
Rochester, NY 14608
(585) 202-7634

State of New York
Monroe County Supreme & County Courts

-----X

In re: Matter of the Application for a
Risk Level Determination Pursuant to
Article 6-C of the Correction Law.
(Sex Offender Registration Act) as to:

JEFFREY BERNECKY,

NYSID No. OS6430

Respondent, Pro Se.

Index No: None Provided by Clerk

Hearing Date: September 11, 2026

Before: Hon. Karen Bailey Turner, J.C.C.

**EXHIBITS TO CERTIFICATION
OF JEFFREY BERNECKY**

-----X

EXHIBITS A THROUGH E

Annexed to and authenticated by the Certification of Jeffrey Bernecky, submitted
pursuant to CPLR 2106 in connection with the risk-level classification hearing
scheduled for September 11, 2026.

INDEX OF EXHIBITS

Exhibit A. Government's Supplemental Sentencing Statement, filed January 13, 2012, in
Docket No. 6:11-CR-06045, Doc. 24 (W.D.N.Y.).

Exhibit B. Amended Sentencing Statement, filed May 29, 2018, in Docket No.
6:18-CR-06018, Doc. 24 (W.D.N.Y.).

Exhibit C. Government's Statement with Respect to Sentencing Factors, filed April 24,
2018, in Docket No. 6:18-CR-06018, Doc. 18 (W.D.N.Y.).

Exhibit D. Bureau of Prisons Program Statement 1351.05, Release of Information (as
amended).

Exhibit E. Defendant's Sentencing Memorandum, filed January 6, 2012, in Docket No.
6:11-CR-06045, Doc. 23 (W.D.N.Y.), submitted by then-counsel Adrian J. Burke, Esq.

EXHIBIT A

Government's Supplemental Sentencing Statement, filed January 13,
2012, in Docket No. 6:11-CR-06045, Doc. 24 (W.D.N.Y.).

IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF NEW YORK

UNITED STATES OF AMERICA,

v.

11-CR-6045DGL

JEFFREY BERNECKY

Defendant.

GOVERNMENT'S SUPPLEMENTAL SENTENCING STATEMENT

Preliminary Statement

On May 18, 2011, the defendant, Jeffrey Bernecky, pled guilty to a two-count indictment charging him with one count of knowing possession of child pornography in violation of Title 18, United States Code, Section 2252A(a) (5) (B) and one count of knowing distribution of child pornography in violation of Title 18, United states Code, Section 2252A(a) (2) (A).

On or about November 14, 2011, a Pre-Sentence Report (PSR) was issued whereby it calculated the defendant's advisory sentence to be a term of imprisonment between 235 to 293 months (based on a two-level acceptance of responsibility). The government has since modified its recommendation and has moved for the third-level of acceptance of responsibility which results in a Guidelines calculation of 210 to 262 months.

DISCUSSION

The government respectfully submits that an appropriate sentence in this case involves a term of imprisonment.

As an initial matter, United States v. Dorvee, 616 F.3d 174 (2d Cir. 2010), does not stand for a wholesale rejection of the child exploitation Sentencing Guidelines of § 2G2.2. It is well-settled that calculating the advisory sentencing guidelines is the first step in determining the defendant's ultimate sentence, after which the Court must consider the § 3553(a) factors. United States v. Dorvee, 616 F.3d 174, 180 (2010) quoting United States v. Gall, 552 U.S. 38, 49-50 (2007); see also, United States v. Aumais, __F.3d__, 2011 WL 3926922, *9 (2d Cir. Sept. 8, 2011). In Aumais, decided recently, the Second Circuit upheld the guidelines sentence imposed by the district court, noting that the sentence was based upon an "individualized assessment" of the § 3553(a) factors. Aumais, at *9.

In this case, the Guidelines calculations provide a reflection into the volume and the nature of the material possessed by this particular defendant. Indeed, in light of the fact that the defendant was sharing this material and actively seeking to trade in the material, the defendant was charged with distribution of child pornography under Title 18 U.S.C. § 2252A (a)(2)(A) and is subject to a mandatory minimum term of imprisonment of five years.

This particular defendant did far more than press a button. Far from being a mere passive collector, this defendant actively

traded in these images - using the name "norselok1", the defendant at one point was sharing over 6,200 files totaling over 107 GB of data. In all, the defendant in total possessed over 8,000 videos which, under the Sentencing Guidelines, constitutes 600,000 images. Even if we did not utilize the counting methodology of the Sentencing Guidelines, the 8,000 videos number is over thirteen times the 600 number of images required for the highest level of enhancement based on the number of images.

The defendant told law enforcement officers that he would use the peer-to-peer program an hour at night and that the average age of the children depicted in the images in his collection was between 10 to 12 years old. He indicated that he "can't help it. I wish I could change it." The defendant admitted that he masturbated to the images and that he used to "trade a lot". The defendant finally indicated that he "tried to slow down" and that while he did not want to get into trouble, he "can't stop." It should be further noted that the defendant worked at the YMCA from 2004 through his arrest in 2010. He worked both as a camp counselor and in the after-school program. He admitted to agents that when he was 17, kids at the YMCA would climb on him at the pool and he would get sexually aroused because they would rub on him. PSR at 70.

In taking into account the nature and circumstances of the offense, and in looking at the offender here in particular, taking into account the need to send a message of deterrence that society will not tolerate those who provide a demand for images involving the sexual abuse and exploitation of children, a sentence consisting of some term of imprisonment is appropriate.

CONCLUSION

For the foregoing reasons, the court should impose a sentence of imprisonment followed by at a lengthy term of supervised release.

DATED: Rochester, New York, January 13, 2012.

Respectfully submitted,

WILLIAM J. HOCHUL, JR.
United States Attorney

BY: s/Tiffany H. Lee
TIFFANY H. LEE
Assistant U.S. Attorney
United States Attorney's Office
Western District of New York
100 State Street
Rochester, New York 14614
(585)263-6760, ext. 2251
Tiffany.Lee@usdoj.gov

TO: Adrian J. Burke, Esq.
Counsel for Defendant
United States Probation Department
Attn: David B. Spogen
U.S. Probation Officer

IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF NEW YORK
UNITED STATES OF AMERICA,

v.

11-CR-6045DGL

JEFFREY BERNECKY,

Defendant.

CERTIFICATE OF SERVICE

I hereby certify that on January 13, 2012, I electronically filed the foregoing with the Clerk of the District Court using its CM/ECF system, which would then electronically notify the CM/ECF participant(s) on this case.

Adrian J. Burke, Esq.

s/Patricia Reis
Patricia Reis

EXHIBIT B

Amended Sentencing Statement, filed May 29, 2018, in Docket No.
6:18-CR-06018, Doc. 24 (W.D.N.Y.).

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF NEW YORK**

UNITED STATES OF AMERICA

18-CR-6018-DGL

v.

**AMENDED
SENTENCING STATEMENT**

JEFFREY BERNECKY,

Defendant

MARK D. HOSKEN, Supervisory Assistant Federal Public Defender for the Western District of New York, affirms as follows:

1. I am an attorney licensed to practice law in the State of New York and the United States District Court for the Western District of New York. I represent the defendant, Jeffrey Bernecky.

2. The factual representations made in this Statement are based on my investigations, conversations with Jeffrey Bernecky, and a review of the Presentence Investigation Report [hereinafter PSR], dated April 18, 2018, and revised on May 21, 2018.

INTRODUCTION

3. On February 15, 2018, Jeffrey Bernecky appeared before United States Magistrate Judge Payson and pleaded guilty to a one count Information charging possession of child pornography in violation of 18 U.S.C. § 2252A(a)(5)(B) and 2252A(b)(2). The plea agreement was constructed pursuant to Rule 11(c)(1)(C).

4. Sentencing is currently scheduled for June 7, 2018 at 10:00 AM.

OBJECTIONS

5. Mr. Bernecky objects to Paragraph 70 on page 13 of the revised PSR as it states restitution shall be ordered in the amount of \$58,415.00. As set out below in the RESTITUTION section, that amount is inconsistent with the Supreme Court's determination in *Paroline v. United States*, 134 S.Ct. 1710 (2014).

6. Mr. Bernecky also objects to the inclusion of Paragraphs 79, 80, and 81 found on pages 14 and 15 of the revised PSR.

7. Though the information contained therein may be useful in the court's determination whether to accept the plea and impose the agreed upon term of imprisonment, it is not relevant for the Bureau of Prisons' purposes. These three paragraphs reference Mr. Bernecky's statements before and during multiple polygraph examinations he experienced while in treatment. Moreover, his discussions while in treatment to his counselors are not relevant to his expected 120 month term in the Bureau of Prisons.

8. Counsel has consistently been advised by former clients serving similar sentences that people with convictions similar to Mr. Bernecky suffer significantly while housed in federal prison. The Bureau of Prisons no longer houses similarly charged and sentenced individuals in a progressive specific facility designated for sex offender treatment. Current practice is to intermingle or "mainstream" sex offenders in traditional prisons. Obviously, Mr. Bernecky will be at greater risk to his personal safety if information similar to that contained in the paragraphs 79, 80, and 81, is made available to his case managers in federal prison. There is no guarantee that the information will remain private and confidential.

9. Thus, it is respectfully request this court order paragraphs 79, 80 and 81 stricken from the final PSR.

RESTITUTION

10. Counsel was advised that “Andy” from the “Sponge Bob” series of images (found on the defendant’s cell phone) seeks restitution in the amount of \$58,415.00: \$25,000.00 is for the defendant’s share of Andy’s future psychological counsel costs and future lost income plus \$33,415.00 for expenses in preparing the underlying report. The defendant objects to this Court imposing that restitution amount as it would be inconsistent with the Supreme Court’s holding in *Paroline v. United States*, 134 S.Ct. 1710 (2014).

11. In *Paroline*, the Court held that “restitution is therefore proper under §2259 only to the extent the defendant’s offense proximately caused a victim’s losses.” 134 S.Ct. at 1722. The Court specifically recognized the difficulty in “determining the full amount of those general losses, if any, that are the proximate result of the offense conduct of a particular defendant who is one of thousands who have possessed and will in the future possess the victim’s images but who has no other connection to the victim.” *Id.*

12. The Court set out a list of factors for this Court to consider when crafting an appropriate award. These include the number of past defendants found to have contributed to the victim’s general losses; reasonable predications of the number of future offenders; any available and reasonably reliable estimate of the broader number of offenders involved; whether the defendant reproduced or distributed images of the victim; whether the defendant had any connection to the initial production of the images; how many images of the victim the defendant possessed; and other facts relevant to the defendant’s relative casual role. *Id.* at 1728.

13. Here, the defendant possessed (not distributed) 200 images and 25 videos on his cell phone. According to the revised PSR (page 8, ¶ 34), the defendant possessed one image from the Sponge Bob Series.

14. The materials provided to the defendant seeking restitution refer to two reports completed in 2014 based on the assessment of “Andy” conducted in 2013 and 2014. No more current information was provided.

15. Counsel requested and was provided by the Government a five page spread sheet showing national restitution amounts for other defendants accused of possessing and/or receiving and/or distributing files containing images of “Andy.” The majority of the convictions contained therein were for possession.

16. Counsel analyzed the amounts awarded for restitution sought by “Andy.” Some of that information may be beneficial to this Court:

Cumulative amount awarded	\$1,175,373.00
Highest award (1x)	\$ 250,000.00
Most frequent award (31x)	\$ 3,000.00
Second most frequent award (29x)	\$ 1,000.00
Lowest award (1x)	\$ 250.00
Requested amount award (8x)	\$ 58,415.00

17. Also, counsel determined that three of the awards to “Andy” were from the Western District of New York. These include:

NAME	CR	DATE	CONVICTION	AMOUNT
Carrillo	15-CR-235-RJA	07/01/2016	Possession	\$1,000.00
Stonoha	16-CR-6046-CJS	10/13/2016	Possession	\$2,500.00
Welch	13-CR-6181-CJS	02/26/2015	Possession Receipt Distribution	\$2,000.00

18. Additionally, there is no claim the defendant reproduced or distributed images of the victim. Nor is there any evidence the defendant had any connection to the initial production of the images.

19. Based on all of the above information, the defendant maintains that a restitution award of \$58,415.00 is inconsistent with the Supreme Court's direction in *Paroline* and not supported by the facts present in the instant prosecution.

20. It is requested that should this Court determine restitution should be awarded to "Andy," this Court impose no more than \$500.00.

CONCLUSION

21. Based on all of the above, it is respectfully requested that Your Honor accept the Rule 11(c)(1)(C) plea and impose the agreed upon term of 120 months imprisonment.

Dated: May 21, 2018

/s/ Mark D. Hosken
Mark D. Hosken
Supervisory Assistant Federal Public Defender
Federal Public Defender's Office
28 E. Main Street, Suite 400
Rochester, New York 14614
(585) 263-6201
Mark_Hosken@fd.org
Attorney for Jeffrey Bernecky

To: Kyle Rossi, AUSA
Jessica Rider, USPO

EXHIBIT C

Government's Statement with Respect to Sentencing Factors, filed
April 24, 2018, in Docket No. 6:18-CR-06018, Doc. 18 (W.D.N.Y.).

IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF NEW YORK

UNITED STATES OF AMERICA,

v.

18-CR-6018-DGL

JEFFREY BERNECKY,

Defendant.

**STATEMENT OF THE GOVERNMENT
WITH RESPECT TO SENTENCING FACTORS**

PLEASE TAKE NOTICE, that the government hereby adopts all findings of the Presentence Investigation Report with respect to sentencing factors in this action.

Should the defendant present any letters of support or sentencing statement to the Court, the United States will move to strike the items from the record if this office is not provided with copies at least three business days prior to sentencing.

The defendant is required by 18 U.S.C. § 3013 to pay the sum of \$100 at the time of sentencing. Immediately after sentencing, the defendant must pay the amount due by personal check, cashier's check or certified funds to the United State District Court Clerk.

It is requested that the Court order that all financial obligations be due immediately. In the event the defendant lacks the ability to immediately pay the financial obligations in full, it is requested that the Court set a schedule for payment of the obligations.

In the event present counsel for the defendant will continue to represent the defendant after sentencing in regard to the collection of unpaid financial obligation(s), it is requested that a letter so advising be sent to:

Asset Forfeiture/Financial Litigation Unit
U.S. Attorney's Office--WDNY
138 Delaware Avenue
Buffalo, New York 14202

If a letter is not received within 10 days of sentencing, the defendant will be directly contacted regarding collection of the financial obligation(s).

Upon the ground that the defendant has assisted authorities in the investigation or prosecution of the defendant's own misconduct by timely notifying authorities of the defendant's intention to enter a plea of guilty, thereby permitting the government to avoid preparing for trial and permitting the government and the Court to allocate their resources efficiently, the government hereby moves the Court to apply the additional one (1) level downward adjustment for acceptance of responsibility pursuant to U.S.S.G. § 3E1.1(b).

Pursuant to the Rule 11(c)(1)(C) provisions in the Plea Agreement, the government respectfully requests that the Court impose a 120 month term of imprisonment as part of the sentence in this case, and that the sentence of imprisonment run concurrently with the sentence imposed for the defendant's supervised release violation pending under 11-CR-6045.

DATED: Rochester, New York,
April 24, 2018

JAMES P. KENNEDY, JR.
United States Attorney
Western District of New York

BY: s/KYLE P. ROSSI
Assistant U.S. Attorney
U.S. Attorney's Office
100 State Street, Suite 500
Rochester, New York 14614
Tel.: (585) 263-6760
Kyle.Rossi@usdoj.gov

TO: Mark Hosken, Esq.
Jessica Rider, U.S.P.O.

EXHIBIT D

Bureau of Prisons Program Statement 1351.05, Release of
Information (as amended).



U.S. Department of Justice
Federal Bureau of Prisons

CHANGE NOTICE

OPI: OGC/OGC
NUMBER: 1351.05, CN-2
DATE: March 9, 2016

Release of Information

/s/

Approved: Thomas R. Kane
Acting Director, Federal Bureau of Prisons

This Change Notice (CN) implements the following change to Program Statement 1351.05 (CN-1), **Release of Information**, dated April 2, 2015. This text is inserted into the Program Statement (p.8) and marked with a **highlight**.

Law Enforcement requests for telephone monitoring information:

For telephone monitoring information concerning inmate telephone calls, ordinarily only transactional data (e.g., date, time, duration of the call) may be disclosed to Federal and state authorities for use in criminal investigations or prosecutions, upon a written request via BP-A0655, Request for Inmate Transactional Data.

Access to inmate telephone conversations that were previously recorded, or copies of the recorded telephone conversations (even when those conversations are yet to be recorded as long as the monitoring and recording is in the ordinary course of BOP duties), or written transcripts, shall only be disclosed to a requesting law enforcement authority when:

- (1) requested in an emergency situation;
- (2) criminal activity is discovered as part of the routine monitoring for prison administration purposes; or
- (3) requested through proper process (e.g., written endorsement by a U.S. Attorney or DOJ Criminal Section Chief, in connection with a criminal investigation, grand jury subpoena, or administrative subpoena); **or**

Note: U.S. Attorney authorization may only be delegated to an Acting U.S. Attorney when the U.S. Attorney is out of the jurisdiction or otherwise incapacitated. Authorization cannot be delegated to a First Assistant U.S. Attorney or Criminal Chief, or any other position within the U.S. Attorney's Office.

(4) requested by the FBI in furtherance of national security investigations, the collection of foreign intelligence information, or any other matter related to domestic or international terrorism.

Note: Requests relating to #4 above must be written on FBI letterhead in a standard format produced in consultation with both the FBI and BOP (facsimile or scanned electronic copies are acceptable), directed to the Chief, Counter Terrorism Unit (CTU), and signed by the appropriate Special Agent-in-Charge.

A request must contain a specific statement indicating it is in furtherance of at least one of the three matters listed above, and provide sufficient information to locate the requested telephone conversations.

FBI requests submitted pursuant to this section do not require a subpoena, court order, or any other type of legal process. They are limited to one year from the date of the request, and they can be renewed for additional one-year periods.

All requests for content of inmate telephone conversations must be directed to the CTU. Institutions provide all required materials outlined in the request to the CTU for delivery to the FBI.



U.S. Department of Justice
Federal Bureau of Prisons

CHANGE NOTICE

OPI: OGC/OGC
NUMBER: 1351.05, CN-1
DATE: April 2, 2015

Release of Information

/s/

Approved: Charles E. Samuels, Jr.
Director, Federal Bureau of Prisons

This Change Notice (CN) implements the following change to Program Statement 1351.05, **Release of Information**, dated September 19, 2002. This text is inserted into the Program Statement (p.8) and marked with a **highlight**.

Law Enforcement requests for telephone monitoring information:

For telephone monitoring information concerning inmate telephone calls, ordinarily only transactional data (e.g., date, time, duration of the call) may be disclosed to Federal and state authorities for use in criminal investigations or prosecutions, upon a written request via BP-A0655, Request for Inmate Transactional Data.

Access to inmate telephone conversations that were previously recorded, or copies of the recorded telephone conversations (even when those conversations are yet to be recorded as long as the monitoring and recording is in the ordinary course of BOP duties), or written transcripts, shall only be disclosed to a requesting law enforcement authority when:

- (5) requested in an emergency situation;
- (6) criminal activity is discovered as part of the routine monitoring for prison administration purposes; or
- (7) requested through proper process (e.g., written endorsement by a U.S. Attorney or DOJ Criminal Section Chief, in connection with a criminal investigation, grand jury subpoena, or administrative subpoena).

Note: U.S. Attorney authorization may only be delegated to an Acting U.S. Attorney when the U.S. Attorney is out of the jurisdiction or otherwise incapacitated. Authorization cannot be delegated to a First Assistant U.S. Attorney or Criminal Chief, or any other position within the U.S. Attorney's Office.



Program Statement

OPI: OGC
NUMBER: 1351.05
DATE: 9/19/2002
SUBJECT: Release of Information

PART ONE: [GENERAL PROVISIONS AND PROCEDURES]

1. [PURPOSE AND SCOPE § 513.30. This subpart establishes procedures for the release of requested records in possession of the Federal Bureau of Prisons ("Bureau"). It is intended to implement provisions of the Freedom of Information Act (FOIA), 5 U.S.C. 552, and the Privacy Act, 5 U.S.C. 552a, and to supplement Department of Justice (DOJ) regulations concerning the production or disclosure of records or information, 28 CFR part 16.]

The Freedom of Information Act (FOIA) and the Privacy Act (PA) interact with each other in two areas:

- # When any person requests access to records about himself or herself, both statutes become potentially applicable;
- # When any person requests access to another individual's record through the FOIA, the Privacy Act may prohibit the disclosure of that record unless FOIA requires it.

The determination of what information may be released requires Bureau staff to have a basic understanding of both the FOIA and the Privacy Act, as well as a working knowledge of DOJ and Bureau policy. Bureau staff also should be aware that the Privacy Act establishes criminal penalties and civil liabilities for unauthorized disclosures. The appropriate Regional Counsel shall be contacted when staff are uncertain whether requested information may be disclosed.

Staff shall become familiar with the policy governing release of information, with special emphasis upon those areas with direct application to the employee's job.

Information requests submitted by the union pursuant to 5 U.S.C. § 7114 will be addressed in accordance with this provision and relevant case law.

[Bold Type - Rules]

Regular Type - Implementing Information

This Program Statement is divided into four major parts:

Part	Page
General Provisions and Procedures	1
Inmate Requests to Institution for Information	12
Privacy Act Requests for Information	21
Freedom of Information Act Requests for Information	25

2. **SUMMARY OF CHANGES.** This Program Statement is being revised to prohibit inmates from obtaining and possessing photocopies of their Pre-sentence Reports (PSR) and the Statement of Reasons (SOR) from their Judgment(s) in a Criminal Case. The purpose of this prohibition is to protect inmates from being coerced by other inmates to produce their PSRs and SORs for illicit purposes. Inmates will be permitted to review their PSRs and SORs, but cannot obtain or possess photocopies. This revision also introduces a new form which inmates can use to facilitate court review of their PSRs or SORs.

If local procedures are changed, notification to the union and training will be handled in accordance with the Master Agreement.

3. **PROGRAM OBJECTIVES.** The expected results of this program are:

a. Information will be released to a requester in accordance with Federal law and the regulations and policies of the U.S. Department of Justice.

b. Inmate Freedom of Information Act requests to the Central Office will be reduced by increasing the use of institution procedures that provide for inmate review of Bureau policy documents and records in Inmate Central Files.

c. Future litigation pertaining to FOIA/Privacy Act issues will be reduced.

4. **DIRECTIVES AFFECTED**

a. **Directive Rescinded**

PS 1351.04 Release of Information (12/5/96)

b. **Directives Referenced**

PS 1330.13 Administrative Remedy Program (12/22/95)
 PS 1480.05 Contacts with News Media (9/21/00)
 PS 5070.10 Judicial Recommendations and U.S. Attorney Reports, Responses to (6/30/97)

PS 5270.07 Inmate Discipline and Special Housing Units
(12/29/87)
PS 5310.12 Psychology Services Manual (8/13/93)
PS 5800.10 Mail Management Manual (11/3/95)
PS 5800.11 Inmate Central File, Privacy Folder and
Parole Mini- Files (9/8/97)
PS 6000.05 Health Services Manual (9/15/96)

Public Information Officer's Handbook (1994)

c. Bureau rules cited in this Program Statement are contained in 28 CFR 513.30 through 68.

d. Other rules referenced in this Program Statement are contained in 5 CFR part 297 and 28 CFR parts 16 and 301.

e. United States Code sections cited in this Program Statement are contained in 5 U.S.C. 301, 552 and 552a; 13 U.S.C.; 18 U.S.C. 3621, 3622, 3624, 4001, 4042, 4081, 4082, 5006, 5024; 28 U.S.C. 509, 510; and 31 U.S.C. 3711(f).

f. Privacy Act Issuances, 1991 Comp., Volume II.

g. United States Department of Justice et al. v. Julian et al., 108 S.Ct. 1606 (1988).

5. **STANDARDS REFERENCED**

a. American Correctional Association 3rd Edition Standards for Adult Correctional Institutions: 3-4020, 3-4095, and 3-4096

b. American Correctional Association 3rd Edition Standards for Adult Local Detention Facilities: 3-ALDF-1E-04, 1E-05

c. American Correctional Association 2nd Edition Standards for Administration of Correctional Agencies: 2-CO-1E-06, 1E-07, and 1E-08

6. **LIMITATIONS § 513.31**

a. **Social Security Numbers.** As of September 27, 1975, Social Security Numbers may not be used in their entirety as a method of identification for any Bureau record system, unless such use is authorized by statute or by regulation adopted prior to January 1, 1975.

b. **Employee Records.** Access and amendment of employee personnel records under the Privacy Act are governed by Office of Personnel Management regulations published in 5 CFR part 297 and by Department of Justice regulations published in 28 CFR part 16.]

7. **[GUIDELINES FOR DISCLOSURE § 513.32]**

a. **[The Bureau provides for the disclosure of agency information pursuant to applicable laws, e.g. the Freedom of Information Act (5 U.S.C. 552), and the Privacy Act (5 U.S.C. 552a).]**

b. Pursuant to 28 CFR part 16, the authority to release or deny access to records and information is limited to the Director or his or her designee.

c. Bureau staff shall release a Bureau record in response to a request made in accordance with this rule, unless a valid legal exemption to disclosure is asserted.

! Bureau staff may assert any applicable exemption to disclosure which is provided under the FOIA in 5 U.S.C. § 552(b) or under the Privacy Act in 5 U.S.C. § 552a.

! For a listing of general FOIA Exemptions, see the **Exemptions to Disclosure Provided in the Freedom of Information Act (Attachment A)**.

! For a listing of Bureau systems of records which the Attorney General has exempted from access and disclosure under the Privacy Act, see 28 CFR 16.97.

Questions regarding the applicability of exemptions may be referred to the appropriate Regional Counsel or to the Office of General Counsel.

d. Examples of documents or information which ordinarily may be withheld from disclosure include the examples which follow. These examples are not intended to represent an all-inclusive list of every situation when FOIA exemptions may apply, nor are the FOIA exemptions cited for each example the only ones which may apply to the examples provided.

(1) Documents or information which could reasonably be expected to constitute an unwarranted invasion of personal privacy, i.e. information that is not "public information."

! For the applicable FOIA exemptions, see Exemptions 6 and 7 in Attachment A.

! Information concerning an individual inmate is not generally available to FOIA requesters unless the inmate whose records are being sought has given a written consent to the disclosure or unless the

information has been determined to constitute "public information." For guidance on what constitutes "public information," see **Public Information (Attachment B)**.

- ! Requests by one inmate for public information concerning other inmates must be reviewed very carefully, as prison security concerns may outweigh the right to a FOIA disclosure.
- ! A denial of such public information to an inmate requester may be done only with the Regional Counsel's approval, after assessing the risks that disclosure might pose to the safety of the inmate(s) whose records are being sought and to other inmates and staff in the institution. See Section 7.d.(2), below. A high risk of gang-related prison violence is an example of a prison security concern which might justify the withholding of public information about one inmate to another inmate while in custody.

(2) Documents or information which would reveal sources of information obtained through a legitimate expectation of confidentiality or which would otherwise endanger the life or physical safety of any person.

- ! For the applicable FOIA exemptions, see Exemptions 6 and 7 in Attachment A.
- ! An example is a statement of an inmate witness made in the context of a current or a completed disciplinary, criminal, or accident investigation. This statement shall not be disclosed to another inmate if such disclosure would endanger the inmate witness.

(3) Documents or information which could disrupt an inmate's institutional program due to the diagnostic or evaluative opinions contained in the document, and which would likely provoke adjustment difficulties or aggravate existing adjustment difficulties.

- ! For the applicable FOIA exemptions, see Exemptions 5 and 6 in Attachment A.

(4) Documents or information which would interfere with ongoing law enforcement proceedings, including administrative investigations.

- ! For the applicable FOIA exemptions, see Exemptions 5 and 7 in Attachment A.

! While certain investigative information might be disclosed **after** an administrative investigation is completed, particular care must be exercised regarding disclosure during the course of the investigation. Even after the investigation is completed, personal safety and prison security concerns may outweigh the right to a FOIA disclosure.

! Only the institution staff member the Warden designates as the institution's Public Information Officer is authorized to make public statements regarding any investigation. For further guidance, see the Program Statement on Contacts with the News Media and the Public Information Officer's Handbook.

Questions regarding criminal prosecutions, such as the status of a case, shall be referred to the appropriate U.S. Attorney.

(5) Documents or information which, through disclosure of law enforcement techniques, information, or procedures, could reasonably be expected to enable the requester to violate a law, or to threaten the security of a Bureau institution or the safety of any person.

! For the applicable FOIA exemptions, see Exemptions 2 and 7 in Attachment A.

! Some Program Statements and Operations Memoranda, and other documents such as post orders, construction diagrams, etc., may be exempted because disclosing them would pose a threat to institutional security. This may also apply to information contained in investigations and other Bureau reports where law enforcement techniques are described.

8. [PRODUCTION OF RECORDS IN COURT § 513.33. Bureau records are often sought by subpoena, court order, or other court demand, in connection with court proceedings. The Attorney General has directed that these records may not be produced in court without the approval of the Attorney General or his or her designee. The guidelines are set forth in 28 CFR part 16, subpart B.]

Bureau staff who receive such demands shall consult with their Regional Counsel or the Office of General Counsel for advice regarding proper handling of the demand.

9. [PROTECTION OF INDIVIDUAL PRIVACY - DISCLOSURE OF RECORDS TO THIRD PARTIES § 513.34.] Bureau employees must carefully maintain and process all information concerning individuals to ensure that information is accurate, relevant, and timely, and to ensure that no inadvertent disclosure of information is made.

[a. Information that concerns an individual and is contained in a system of records maintained by the Bureau shall not be disclosed to any person, or to another agency, except under the provisions of the Privacy Act, 5 U.S.C. 552a, or the Freedom of Information Act, 5 U.S.C. 552, and Departmental regulations.]

Staff may disclose information from a Bureau system of records only if one or more of the following criteria apply:

(1) With the written consent of the individual to whom the record pertains. The Release of Information Consent form (BP-S192.013) may be used;

(2) To employees of the DOJ who have a need for the record in the performance of their duties;

(3) If disclosure is permitted under the FOIA, 5 U.S.C. § 552, e.g. "public information", when the public interest in disclosure of the information outweighs the privacy interest involved;

! For guidance on what constitutes "public information," see Attachment B.

(4) For a **routine use** described in the DOJ "Notice of Record System" for the system of records which contains the information, as published in the Federal Register.

! For a list of the Bureau's systems of records that have been published in the Federal Register, see the **Bureau Systems of Records (Attachment C)**, as updated in BOPDOCS.

! The published notices for these systems describe the records contained in each system and the routine uses for disclosing these records without obtaining the consent of the person to whom the records pertain. For copies of the published systems notices, see BOPDOCS and/or contact the FOIA/PA section of the Office of General Counsel.

A **list of routine uses** for records contained in the Inmate Central File is also contained in the Program Statement concerning Central File, Privacy Folder, and Parole Mini-Files.

Routine uses for Bureau systems of records may include the following:

(a) To Federal, state, local and foreign law enforcement officials for law enforcement purposes such as investigations, possible criminal prosecutions, civil court actions, or administrative and regulatory proceedings.

Law Enforcement requests for telephone monitoring information:

- ! For telephone monitoring information concerning inmate telephone calls, ordinarily only transactional data (e.g. date, time, duration of the call) may be disclosed to Federal and state authorities for use in criminal investigations or prosecutions, upon a written request via BP-A0655, Request for Inmate Transactional Data.
- ! Access to inmate telephone conversations that were previously recorded, or copies of the recorded telephone conversations (even when those conversations are yet to be recorded as long as the monitoring and recording is in the ordinary course of BOP duties), or written transcripts, shall only be disclosed to a requesting law enforcement authority when:
 - (1) requested in an emergency situation;
 - (2) criminal activity is discovered as part of the routine monitoring for prison administration purposes; or
 - (3) requested through proper process (e.g., written endorsement by a U.S. Attorney or DOJ Criminal Section Chief, in connection with a criminal investigation, grand jury subpoena, or administrative subpoena); or

Note: U.S. Attorney authorization may only be delegated to an Acting U.S. Attorney when the U.S. Attorney is out of the jurisdiction or otherwise incapacitated. Authorization cannot be delegated to a First Assistant U.S. Attorney or Criminal Chief, or any other position within the U.S. Attorney's Office.

- (4) requested by the FBI in furtherance of national security investigations, the collection of foreign intelligence information, or any other matter related to domestic or international terrorism.

Note: Requests relating to #4 above must be written on FBI letterhead in a standard format produced in consultation with both the FBI and BOP (facsimile or scanned electronic copies are acceptable), directed to the Chief, Counter Terrorism Unit (CTU), and signed by the appropriate Special Agent-in-Charge.

A request must contain a specific statement indicating it is in furtherance of at least one of the three matters listed above, and provide sufficient information to locate the requested telephone conversations.

FBI requests submitted pursuant to this section do not require a subpoena, court order, or any other type of legal process. They are limited to one year from the date of the request, and they can be renewed for additional one-year periods.

All requests for content of inmate telephone conversations must be directed to the CTU. Institutions provide all required materials outlined in the request to the CTU for delivery to the FBI.

! All requests by law enforcement agencies for access to recordings of inmate telephone conversations shall be referred to Regional Counsel.

(b) To the Bureau of the Census for purposes of planning or carrying out a census or survey or related activity pursuant to the provisions of Title 13, United States Code;

(c) To a recipient who has provided the Bureau with advance adequate written assurance that the record will be used solely as a statistical research or reporting record, and the record is to be transferred in a form that is not individually identifiable;

(d) To the National Archives and Records Administration (NARA) as a record which has sufficient historical or other value to warrant its continued preservation by the U.S. Government, or for evaluation by the Administrator of the General Services Administration or his or her designee to determine whether the record has such value;

(e) To either House of the U.S. Congress, or, to the extent of a matter within its jurisdiction, any Congressional committee or subcommittee, any joint committee of Congress or subcommittee of any such joint committee;

Congressional requests on behalf of constituents for information about inmates:

! Responses to individual members of Congress requesting information on behalf of a constituent are limited to public information unless staff have first obtained the inmate's express or implied consent to provide a fuller response.

! Written consent from the inmate shall be obtained when practical, using the form BP-S192.013. When this is not practical, staff should consider whether there is implied consent by the inmate. An example of implied consent is a Congressional inquiry which resulted from a letter the inmate sent to the member of Congress and this letter is included with the request from the member of Congress.

! Implied consent may not be inferred when a third party (for example, the inmate's spouse or parents) initiated the Congressional request for information. In such a situation, only public information (see Attachment B) may be released to the member of Congress without the inmate's written consent.

Questions regarding appropriate responses to Congressional inquiries shall be directed to the appropriate Regional Counsel or to staff in the FOIA/PA Section of the Office of General Counsel.

(f) Pursuant to an order of a court of competent jurisdiction;

(g) To a requester from appropriate state offices (e.g., state department of corrections, parole board, attorney general) seeking access to records concerning state inmates in Bureau custody.

! Although state inmates are confined in Bureau institutions, they remain state prisoners. A state inmate may receive periodic visits from state correctional and parole officials to review and evaluate his or her status, parole eligibility, and release readiness. To accomplish those purposes, state officials require access to the files of state inmates.

- ! Wardens shall ensure that officials of such state offices, who need to review the records, are provided, upon request, access to the complete record of a state inmate in a Bureau institution.

(5) **Records Concerning Former Youth Corrections Act (YCA) Inmates.** Information on former YCA inmates, including the fact that the person has been confined, shall not be released without Regional Counsel review to determine whether the conviction has been expunged and whether disclosure is appropriate.

[b. Lists of Bureau inmates shall not be disclosed.]

Any request for such lists shall be forwarded to the Office of General Counsel, Central Office.

c. A list of Bureau employees may be generally releasable. Questions shall be directed to the appropriate Regional Counsel or to the FOIA/PA Section of the Office of General Counsel.

10. [ACCOUNTING/NONACCOUNTING OF DISCLOSURES TO THIRD PARTIES
§ 513.35. Accounting/nonaccounting of disclosures to third parties shall be made in accordance with Department of Justice regulations contained in 28 CFR 16.52.]

Except for disclosures of information to other DOJ employees, and all components thereof, and except for disclosures required under the FOIA (e.g., public information, as listed on Attachment B), an accounting of disclosures to third parties of any information concerning an individual contained in a Bureau system of records will be made in accordance with the following guidelines:

a. Oral Disclosure

(1) Staff may orally release only public information. When public information is thus disclosed, no accounting is necessary.

- ! Only in an emergency shall staff orally release non-public information to parties other than DOJ employees.

- ! Before such an emergency oral disclosure is made, staff shall contact Regional Counsel or the FOIA/PA Administrator. If this is not possible, staff shall inform the Regional Counsel, or the FOIA/PA Administrator at the Central Office as soon as practicable after the disclosure.

(2) Upon oral disclosure of non-public information, a memorandum shall be prepared and retained in the file from which the record is disclosed, or an appropriate notation shall be maintained in the file, attached to the record disclosed.

This memorandum or notation shall include the following information:

- ! the date of the disclosure,
- ! the name and address of the person to whom the record was disclosed and the name of the agency that person represents, if any,
- ! the purpose of the request for disclosure; and
- ! identification of the specific record disclosed.

For a form designed to assist staff receiving an oral request for information, see the Record Of Information Release form (BP-S171.013).

b. **Written Disclosures.** Accounting for a written disclosure may be made by:

(1) Retaining a copy of the correspondence requesting the information and a copy of the response in the file from which the records are disclosed;

(2) Following the procedure for an accounting of an oral disclosure, as described in Section 10.a., above; or

(3) Developing another method if the method provides, at a minimum, the following information:

- ! the date of the disclosure;
- ! the name and address of the person to whom the record was disclosed and the agency that person represents, if any;
- ! the purpose of the request for disclosure; and
- ! a general description of the specific record disclosed.

c. **Disclosure Record Maintenance.** It is the responsibility of the staff member making a disclosure of non-public information to provide an accurate accounting of that disclosure.

- ! Accounting records of the disclosure of non-public information shall be maintained for five years or until the record is destroyed, whichever is longer, and will be placed in the privacy folder.
- ! When records are transferred to the NARA for storage, the disclosure accounting pertaining to those records, other than correspondence, shall be transferred with the records themselves.
- ! An exemption under 5 U.S.C. § 552a(j) **does not** relieve the Bureau from the responsibility to account for all disclosures other than those within the DOJ or under the FOIA.

11. [GOVERNMENT CONTRACTORS § 513.36]

a. No Bureau component may contract for the operation of a record system by or on behalf of the Bureau without the express written approval of the Director or the Director's designee.

b. Any contract which is approved shall contain the standard contract requirements promulgated by the General Services Administration (GSA) to ensure compliance with the requirements imposed by the Privacy Act. The contracting component shall have the responsibility to ensure that the contractor complies with the contract requirements relating to privacy.

PART TWO: [INMATE REQUESTS TO INSTITUTION FOR INFORMATION]

12. [INMATE ACCESS TO INMATE CENTRAL FILE § 513.40. Inmates are encouraged to use the simple access procedures described in this section to review disclosable records maintained in his or her Inmate Central File, rather than the FOIA procedures described in §§ 513.60 through 513.68 of this subpart. Disclosable records in the Inmate Central File include, but are not limited to, documents relating to the inmate's sentence, detainer, participation in Bureau programs such as the Inmate Financial Responsibility Program, classification data, parole information, mail, visits, property, conduct, work, release processing, and general correspondence. This information is available without filing a FOIA request. If any information] (in the disclosable section) [is withheld from the inmate, staff will provide the inmate with a general description of that information and also will notify the inmate that he or she may file a FOIA request.

a. Inmate Review of His or Her Inmate Central File. An inmate may at any time request to review all disclosable portions of his or her Inmate Central File by submitting a request to a staff member designated by the Warden. Staff are to acknowledge the request and schedule the inmate, as promptly as is practical, for a review of the file at a time which will not disrupt institution operations.]

Further guidance is contained in the Program Statement on Central File, Privacy Folder, and Parole Mini-Files.

When an inmate makes a request to institution staff to review his or her Inmate Central File, he or she shall be advised to make arrangements pursuant to local procedures.

! Because local processing reduces unnecessary FOIA requests, staff shall advise an inmate to make a request for Inmate Central File records to the FOIA/PA Section of the Office of General Counsel **only** when the inmate wishes to review exempt information.

- ! Staff shall not discuss with the inmate the types or nature of nondisclosable documents maintained in his or her Privacy Folder.

Before any document in the Inmate Central File is disclosed to the inmate to whom the documents pertain, or to a third party with the prior written consent of the inmate, the following review shall take place:

(1) **Bureau Documents.** If the document is a Bureau document (generated by Bureau staff) and is not a court-ordered study, staff are to determine whether the document should be withheld from disclosure under Section 7 of this Program Statement and further guidance set forth below.

- ! Staff shall place in the inmate's Privacy Folder any document that is to be withheld from disclosure.

- ! Staff shall place all other documents in the disclosable portion of the Inmate Central File, which is all of the Inmate Central File except for the Privacy Folder.

Guidelines for some specific Bureau documents are provided below:

(a) **Progress Reports.** All Progress Reports prepared:

- ! After October 15, 1974, are subject to release and are to be placed in the disclosable section of the Inmate Central File.
- ! Between February 15 and October 15, 1974, are subject to release except for the recommendation section, which shall be reviewed for disclosure in accord with Section 7 of this Program Statement.
- ! Before February 15, 1974, shall be reviewed for disclosure in accord with Section 7 of this Program Statement.

(b) **Psychiatric Reports**

- ! A psychiatric report written at the request of the U.S. Parole Commission is subject to release and shall be placed in the disclosable section of the Inmate Central File. This report should be written in non-technical language so that it can be understood by non-professionals.

- ! Other psychiatric, psychological, or evaluative reports Bureau staff prepared may also be made available to the U.S. Parole Commission and shall be inserted in the Privacy Folder. A summary of the document must be placed in the Inmate Central File. The summary may be placed in the Progress Report prepared in connection with the inmate's parole hearing. The summary shall be sufficiently detailed to permit the inmate to respond, at the Parole Hearing, to the substance of the withheld information.

(c) **Medical Records.** See Section 14 of this Program Statement.

(d) **Discipline Records.** Discipline records, such as Unit Discipline Committee (UDC) and Discipline Hearing Officer (DHO) packets (including the UDC/DHO report, incident report, notice of hearing, list of inmate rights at UDC/DHO hearing, notice of placement in Administrative Detention, and investigative memoranda), shall be maintained together in the Privacy Folder only if a portion of an investigation or other discipline record contains non-disclosable materials. Copies of all releasable documents shall be placed together in the disclosable section of the Inmate Central File.

(2) **Non-Bureau Documents**

(a) **FBI/National Crime Information Center (NCIC) Information.** The NCIC prohibits the Bureau from disclosing NCIC identification records to an inmate.

Procedures for an inmate to request a copy of his or her FBI/NCIC identification record directly from the FBI are contained in 28 CFR 513.10 through 513.12.

(b) **Documents from Other Federal Agencies.** If a document originates in another Federal agency (including other components of the Department of Justice), it shall be placed in the Privacy Folder, except as provided in section 12, first paragraph (28 CFR 513.40).

When a request for records includes a document from another Federal agency, the document shall be referred to the originating Federal agency for a determination of its releasability (see Attachment D for a suggested format to request disclosure instructions from the originating agency). For documents originating from Federal courts or probation offices, see subsection (d) below.

(c) **Documents from Non-Federal Agencies.** If a document has been received from a source outside the Federal government (e.g., a state agency), it shall be placed in the Privacy Folder, except as provided in section 12, first paragraph (28 CFR 513.40).

When a request for records includes a document from a non-Federal agency, Bureau staff must make a determination of its releasability in consultation with the non-Federal organization (see Attachment D). If the originating non-Federal agency recommends non-disclosure, and Bureau staff determine that non-disclosure is appropriate under 28 CFR 513.32, staff shall document the rationale for non-disclosure and place the document in the Privacy Folder.

(d) **Documents from Federal Courts and Probation Offices**

(1) **Federal Presentence Reports (PSR) and Statements of Reasons (SOR) from Judgments in Criminal Cases.** For safety and security reasons, inmates are prohibited from obtaining or possessing photocopies of their PSRs, SORs, or other equivalent non-U.S. Code sentencing documents (e.g., D.C., state, foreign, military, etc.). Inmates violating this provision are subject to disciplinary action.

This prohibition applies only to the SOR portion of an inmate's Judgment in a Criminal Case. The rest of the Judgment document remains releasable unless circumstances or policy dictate otherwise. PSRs and SORs received by mail will be treated as contraband, and handled according to the Mail Management Manual.

This prohibition does not apply to inmates in Bureau of Prisons custody with a need to review their PSRs prior to sentencing. For example, a pretrial inmate scheduled for sentencing may possess and review the PSR in preparation for sentencing. After sentencing, however, the inmate is prohibited from retaining a copy of the PSR.

The Bureau implemented this policy for the following reasons.

- # Many PSRs and SORs contain information regarding the inmates' government assistance, financial resources, community affiliations, etc.
- # The Bureau has documented an emerging problem where inmates pressure other inmates for a copy of their PSRs and SORs to learn if they are informants, gang members, have financial resources, etc.

- # Inmates who refuse to provide the documents are threatened, assaulted, and/or seek protective custody. Likewise, inmates providing PSRs and SORs containing harmful information are faced with the same risks of harm.

Inmates needing a copy of their PSRs or SORs for filing as an attachment in a court case may obtain, complete, and submit to the court an Inmate Request For Certification or Judicial Notice of Pre-sentence Report and/or Statement of Reasons form (BP-S757.013). The form, which includes instructions for completion, must be available to inmates in the housing units and law libraries.

Although prohibited from obtaining or possessing photocopies, federal inmates are entitled under the FOIA to access their own PSRs (see United States Department of Justice v. Julian, 486 U.S. 1 (1988)) and SORs. Inmates must be provided reasonable opportunities to access and review their PSRs, SORs, or other equivalent non-U.S. Code sentencing documents (e.g., D.C., state, foreign, military, etc.). Inmates are responsible for requesting an opportunity to access and review these records with unit staff in accordance with the Program Statement on Inmate Central File, Privacy Folder, and Parole Mini-Files. **To facilitate inmate access and review, PSRs and SORs should ordinarily be maintained in the disclosable portion of the central file unless significant safety and security concerns dictate otherwise.**

In addition to the above procedures, other provisions of the FOIA may require limiting inmate access to PSRs and SORs. Third party requests for inmate PSRs and SORs should be handled according to Section 29 of this Program Statement.

Staff must maintain PSRs as follows:

- ! A PSR prepared **on or after December 1, 1975**, is to be placed in the disclosable portion of the Inmate Central File.
- ! A PSR prepared **before December 1, 1975**, is to be returned to the sentencing court with a cover letter indicating that the PSR is being returned based on the Supreme Court's decision in Julian and the fact that the PSR was not prepared with the expectation of release. No copy of the returned PSR is to be maintained at the institution, although relevant material from the PSR may be incorporated into other documents.

- ! Documents which the sentencing court has sealed or otherwise labeled as not disclosable to the inmate must be placed in the privacy folder. Questions regarding such documents should be referred to the Regional Counsel.

(2) **Documents Other than Federal PSIs.** Generally, documents originating in a Federal court or probation office shall be placed in the Privacy Folder if the documents are clearly marked to indicate that disclosure to the inmate is inadvisable. Other documents, such as a court-ordered study the Bureau prepared, shall be referred to the requesting court for that court's instructions as to disclosure. A copy of the document shall be maintained in the Privacy Folder until a final determination is made regarding its disclosure.

When Bureau staff reclassify a document from non-disclosable to disclosable, subsequent to any information request encompassing that document, staff shall place the reclassified document in the disclosable section of the Inmate Central File.

[b. Procedures for Inmate Review of His or Her Inmate Central File.]

(1) Prior to the inmate's review of the file, staff are to remove the Privacy Folder which contains documents withheld from disclosure pursuant to § 513.32.

(2) During the file review, the inmate is to be under direct and constant supervision by staff. The staff member monitoring the review shall enter the date of the inmate's file review on the Inmate Activity Record and initial the entry. Staff shall ask the inmate to initial the entry also, and if the inmate refuses to do so, shall enter a notation to that effect.

(3) Staff shall advise the inmate if there are documents withheld from disclosure and, if so, shall advise the inmate of the inmate's right under the provisions of § 513.61 to make a FOIA request for the withheld documents.]

28 CFR 513.32 refers to Section 7 of this Program Statement.
28 CFR 513.61 refers to Section 27 of this Program Statement.
The Inmate Activity Record refers to form BP-381.

13. **[INMATE ACCESS TO INMATE CENTRAL FILE IN CONNECTION WITH PAROLE HEARINGS § 513.41.** A parole-eligible inmate (an inmate who is currently serving a sentence for an offense committed prior to November 1, 1987) may review disclosable portions of the Inmate Central File prior to the inmate's parole hearing, under the general procedures set forth in § 513.40. In addition, the following guidelines apply:]

28 CFR 513.40 refers to Section 12 of this Program Statement.

[a. A parole-eligible inmate may request to review his or her Inmate Central File by submitting the appropriate Parole Commission form. This form ordinarily shall be available to each eligible inmate within five work days after a list of eligible inmates is prepared.

b. Bureau staff ordinarily shall schedule an eligible inmate for a requested Inmate Central File review within seven work days of the request after the inmate has been scheduled for a parole hearing. A reasonable extension of time is permitted for documents which have been provided (prior to the inmate's request) to originating agencies for clearance, or which are otherwise not available at the institution.

c. A report received from another agency which is determined to be nondisclosable (see § 513.40 (b)) will be summarized by that agency, in accordance with Parole Commission regulations. Bureau staff shall place the summary in the appropriate disclosable section of the Inmate Central File. The original report (or portion which is summarized in another document) will be placed in the portion of the Privacy File for Joint Use by the Bureau and the Parole Commission.

d. Bureau documents which are determined to be nondisclosable to the inmate will be summarized for the inmate's review. A copy of the summary will be placed in the disclosable section of the Inmate Central File. The document from which the summary is taken will be placed in the Joint Use Section of the Privacy Folder. Nondisclosable documents not summarized for the inmate's review are not available to the Parole Commission and are placed in a nondisclosable section of the Inmate Central File.

e. When no response regarding disclosure has been received from an originating agency in time for inmate review prior to the parole hearing, Bureau staff are to inform the Parole Commission Hearing Examiner.]

14. [INMATE ACCESS TO MEDICAL RECORDS § 513.42

a. Except for the limitations of paragraphs (c) and (d) of this section, an inmate may review records from his or her medical file (including dental records) by submitting a request to a staff member designated by the Warden.]

Disclosable Bureau medical records include the following:

- ! Medical and Related Data Sheets (BP-8), although this form has been discontinued, older files may still contain such records),
- ! Report of Medical History (SF-93 or BP-360),

- ! Report of Medical Examination (SF-88),
- ! Doctor's Orders (SF-508), and
- ! Medication Sheets (such as Medications and Treatments, PHS Form 2128, Supplement to SF-510).

[b. Laboratory Reports which contain only scientific testing results and which contain no staff evaluation or opinion (such as Standard Form 514A, Urinalysis) are ordinarily disclosable. Lab results of HIV testing may be reviewed by the inmate. However, an inmate may not retain a copy of his or her test results while the inmate is confined in a Bureau facility or a Community Corrections Center. A copy of an inmate's HIV test results may be forwarded to a third party outside the institution and chosen by the inmate, provided that the inmate gives written authorization for the disclosure.

c. Medical records containing subjective evaluations and opinions of medical staff relating to the inmate's care and treatment will be provided to the inmate only after the staff review required by paragraph (d) of this section. These records include, but are not limited to, outpatient notes, consultation reports, narrative summaries or reports by a specialist, operative reports by the physician, summaries by specialists as the result of laboratory analysis, or in-patient progress reports.

d. Prior to release to the inmate, records described in paragraph (c) of this section shall be reviewed by staff to determine if the release of this information would present a harm to either the inmate or other individuals. Any records determined not to present a harm will be released to the inmate at the conclusion of the review by staff. If any records are determined by staff not to be releasable based upon the presence of harm, the inmate will be so advised in writing and provided the address of the agency component to which the inmate may address a formal request for the withheld records. An accounting of any medical records will be maintained in the inmate's medical file.]

Release, review, and accounting of disclosures to inmates and former inmates shall be in accordance with the procedures in the Health Services Manual.

15. [INMATE ACCESS TO CERTAIN BUREAU PROGRAM STATEMENTS
§ 513.43. Inmates are encouraged to use the simple local access procedures described in this section to review certain Bureau Program Statements, rather than the FOIA procedures described in Sections 513.60 through 513.68 of this Subpart.

a. For a current Bureau Program Statement containing rules (regulations published in the Federal Register and codified in 28 CFR), local access is available through the institution law library.

b. For a current Bureau Program Statement not containing rules (regulations published in the Federal Register and codified in 28 CFR), inmates may request that it be placed in the institution law library. Placement of a requested Program Statement in the law library is within the discretion of the Warden, based upon local institution conditions.

c. Inmates are responsible for the costs of making personal copies of any Program Statements maintained in the institution law library. For copies of Program Statements obtained under the FOIA procedures described in Sections 513.60 through 513.68 of this Subpart, fees will be calculated in accordance with 28 CFR 16.10.]

28 CFR 513.60 through 513.68 refers to Sections 26 through 34 of this Program Statement.

16. [FEES FOR COPIES OF INMATE CENTRAL FILE AND MEDICAL RECORDS § 513.44. Within a reasonable time after a request, Bureau staff are to provide an inmate personal copies of requested disclosable documents maintained in the Inmate Central File and Medical Record. Fees for the copies are to be calculated in accordance with 28 CFR § 16.10.]

No fee shall be charged for the following:

- # the first 100 pages of duplication (or its cost equivalent),
- # the first two hours of search time (or its cost equivalent),
or
- # charges which total \$8.00 or less.

The duplication cost is calculated by multiplying the number of pages in excess of 100 by \$0.10, the current rate set in 28 CFR 16.10.

The cost for search time is calculated by multiplying the number of quarter hours in excess of two hours by the following rates set in 28 CFR 16.10 for the staff conducting the search:

- # \$2.25 per quarter hour for clerical staff,
- # \$4.50 per quarter hour for professional staff, and
- # \$7.50 per quarter hour for managerial personnel.

Only fees in excess of \$8.00 shall be assessed. This means that the total cost must be greater than \$8.00, either for the cost of the search (for time in excess of two hours), for the cost of

duplication (for pages in excess of 100 pages), or for both costs combined.

Examples:

Example 1: If a request is made for information contained on 181 pages and clerical staff were able to locate the documents in less than two hours, the requester would be charged \$8.10 (\$0.10 per page x 81).

Example 2: If it takes two hours and 30 minutes for clerical personnel to locate the same 181 pages, the requester would be charged a total of \$12.60 (a duplication fee of \$8.10 plus a \$4.50 search fee for the two quarter hours of time in excess of two hours, at \$2.25 per quarter hour).

Fees for searches shall only be assessed with the authorization of the Regional Counsel or the FOIA/PA Administrator in the Office of General Counsel. Requesters shall pay fees by check or money order payable to the Treasury of the United States. Fees shall be forwarded to the office assessing the fees.

PART THREE: [PRIVACY ACT REQUESTS FOR INFORMATION]

17. [PRIVACY ACT REQUESTS BY INMATES § 513.50. Because inmate records are exempt from disclosure under the Privacy Act, (see 28 CFR 16.97) inmate requests for records under the Privacy Act will be processed in accordance with the FOIA. See §§ 513.61 through 513.68.]

28 CFR 513.61 through 513.68 refers to Sections 27 through 34 of this Program Statement.

18. PRIVACY ACT REQUESTS BY EMPLOYEES OR FORMER EMPLOYEES. An employee or former employee may make a written request for access to documents in his or her Personnel File and/or other documents concerning the requester which are not contained in the employee's personnel file but which are maintained in a Bureau system of records. Such a request is processed pursuant to the applicable provisions of the Privacy Act, 5 U.S.C. § 552a, and the FOIA, 5 U.S.C. § 552.

A written request should be submitted to:

Director
Federal Bureau of Prisons
320 First Street NW
Washington DC 20534

- # The requester shall clearly mark on the face of the letter and on the envelope "**PRIVACY ACT REQUEST**," and shall clearly describe the record sought, including the approximate date covered by the record.
- # An employee making such a request must provide identification data, as listed in 28 CFR 16.41, and may use a Certification of Identity Form (DOJ-361) or self-sworn declaration.

19. **PRIVACY ACT REQUESTS ON BEHALF OF AN EMPLOYEE OR FORMER EMPLOYEE.** A request for records concerning an employee or former employee made by an authorized representative of that employee or former employee may be made by writing to the address above. Such requests shall be processed pursuant to the provisions of the Privacy Act.

- # The request must be clearly marked on the face of the letter and on the envelope "**PRIVACY ACT REQUEST**," and must describe the record sought, including the approximate dates covered by the record.
- # Verification of the identity of the individual whose records are sought is required. See methods of verification listed in 28 CFR 16.41.

20. **ACKNOWLEDGMENT OF PRIVACY ACT REQUESTS.** Requests for records under the Privacy Act received by the FOIA/PA Administrator, Office of General Counsel, shall be reviewed and may be forwarded to the appropriate Regional Office for handling.

- # Requests for records located at a Bureau institution other than the Central Office or a Regional Office shall be referred to the appropriate staff at that institution for proper handling.
- # The requester shall be notified of the status of his or her request by the office with final responsibility for processing the request.
- # Every effort shall be made to respond to the requester within the time limit set under the governing disclosure statute.

21. **REVIEW OF DOCUMENTS FOR PRIVACY ACT REQUESTS.** If a document is deemed to contain information exempt from disclosure, any non-exempt sections of the record shall be provided to the requester after deletion of the exempt portions.

22. **LIMITATIONS ON EMPLOYEE RIGHT TO ACCESS UNDER THE PRIVACY ACT.** Under Congressional authority granted to the Attorney General by 5 U.S.C. § 552a(j) and (k), certain systems of records listed at 28 CFR 16.97 and on Attachment C are exempt from access under the Privacy Act of 1974.

Bureau records are also subject to the FOIA exemptions from disclosure listed in 5 U.S.C. § 552(b).

23. **DENIAL OF ACCESS AND NOTICE OF APPEAL RIGHTS.** If a Privacy Act request for records is denied in whole or in part, a denial letter shall be issued and signed by the Director, or his or her designee, and shall state the basis for denial under 28 CFR 513.32.

A requestor who has been denied such access shall be advised that he or she may appeal that decision to the U.S. Department of Justice, Office of Information and Privacy, (OIP) by filing a written appeal within 30 days of the receipt of the denial.

The appeal shall be marked on the face of the letter and the envelope, "**PRIVACY APPEAL - DENIAL OF ACCESS**," and shall be addressed to the:

Office of Information and Privacy
U.S. Department of Justice
Suite 570, Flag Building
Washington DC 20530

During the appeal, Bureau staff shall assist OIP staff in the review of contested Bureau documents necessary to resolve the appeal and/or litigation. This review may be coordinated by FOIA/PA staff in the Office of General Counsel or Regional Counsel.

24. **CORRECTION OF RECORDS**

a. **Inmate Requests for Correction.** An inmate may submit a written request for correction of records through the Bureau's Administrative Remedy Program.

b. **Non-inmate Requests for Correction.** A person other than an inmate may request correction of inaccurate, incomplete, or irrelevant information by writing to the Director of the Federal Bureau of Prisons.

! A request for correction must identify the particular record in question, state the correction sought, and set forth the justification for the correction.

- ! Both the request and the envelope must be clearly marked "**Privacy Act Correction Request.**"

c. **Bureau Responses**

(1) **Requests to Correct Bureau Records**

(a) Bureau staff may make or deny requests for correction of Bureau records pursuant to procedures contained in 28 CFR 16.50. One basis for denial may be that the records are contained in a Bureau system of records that has been published in the Federal Register and exempted from the Privacy Act's provisions requiring amendment and correction. Refer to 28 CFR 16.97 for further information.

Inmate Central File Records. Unit staff shall take reasonable steps to ensure the accuracy of challenged information in the Inmate Central File, particularly when the challenged information can be verified.

- ! Reasonable steps include requiring specific action from the inmate, such as providing documents which support the challenge and/or the names of people to contact regarding the challenged information.
- ! Once Bureau staff make a determination that the challenged information is incorrect, appropriate notations on the record shall be made to ensure that staff do not use the discredited information to make decisions regarding the inmate.
- ! Special procedures have been developed when the challenged information involves a PSI Report. See the Program Statement on Inmate Central File, Privacy Folder, and Parole Mini-Files for further information.

(b) Any denial of a request for correction should contain a statement of the reason for denial and notice to the requester that the denial may be appealed to the U.S. Department of Justice, Office of Information and Privacy, by filing a written appeal within 30 days of the receipt of the denial.

The appeal shall be marked on the face of the letter and the envelope, "**PRIVACY APPEAL - DENIAL OF ACCESS,**" and shall be addressed to the OIP address cited in Section 23 above.

(2) **Requests to Correct Records Originated by Other Federal Agencies.** Requests for correction of records prepared by other Federal agencies shall be forwarded to that agency for appropriate action and the requester shall be immediately notified of the referral in writing.

(3) **Requests to Correct Records Originated by Non-Federal Source.** When the request is for correction of non-Federal records, the requester shall be advised to write to that non-Federal entity.

25. **FEES FOR PRIVACY ACT REQUESTS.** Fees for copies of records disclosed under the Privacy Act, including fees for an employee's own records, may be charged in accordance with 28 CFR 16.47.

PART FOUR: [FREEDOM OF INFORMATION ACT REQUESTS FOR INFORMATION]

26. [FREEDOM OF INFORMATION ACT REQUESTS § 513.60. Requests for any Bureau record (including Program Statements and Operations Memoranda) ordinarily shall be processed pursuant to the Freedom of Information Act, 5 U.S.C. 552. Such a request must be made in writing and addressed to the Director, Federal Bureau of Prisons, 320 First Street, NW., Washington, D.C. 20534. The requester shall clearly mark on the face of the letter and the envelope "FREEDOM OF INFORMATION REQUEST," and shall clearly describe the records sought. See §§ 513.61 through 513.63 for additional requirements.]

28 CFR 513.61 through 63 refers to Sections 27 through 29 of this Program Statement.

27. [FREEDOM OF INFORMATION ACT REQUESTS BY INMATES § 513.61

a. Inmates are encouraged to use the simple access procedures described in § 513.40 to review disclosable records maintained in his or her Inmate Central File.]

28 CFR 513.40 refers to Section 12 of this Program Statement.

Similarly, inmates are encouraged to use the simple access procedures described in Section 15 above to review certain Bureau Program Statements that may be available locally at the institution.

[b. An inmate may make a request for access to documents in his or her Inmate Central File or Medical File (including documents which have been withheld from disclosure during the inmate's review of his or her Inmate Central File pursuant to § 513.40) and/or other documents concerning the inmate which are not contained in the Inmate Central File or Medical File. Staff shall process such a request pursuant to the applicable provisions of the Freedom of Information Act, 5 U.S.C. 552.

c. The inmate requester shall clearly mark on the face of the letter and on the envelope "FREEDOM OF INFORMATION ACT REQUEST", and shall clearly describe the records sought, including the approximate dates covered by the record. An inmate making such a request must provide his or her full name, current address, date and place of birth. In addition, if the inmate requests documents to be sent to a third party, the inmate must provide with the request an example of his or her signature, which must be verified and dated within three (3) months of the date of the request.]

A request for "my records," "all my records," or similar wording shall be interpreted as a request for a copy of Inmate Central File records **and** Medical File records currently maintained at the inmate's institution of confinement or, in the case of former inmates, in the last institution of confinement.

Inmates are encouraged to provide Federal register numbers to assist in properly identifying requested records.

28. [FREEDOM OF INFORMATION ACT REQUESTS BY FORMER INMATES § 513.62. Former federal inmates may request copies of their Bureau records by writing to the Director, Federal Bureau of Prisons, 320 First Street, NW., Washington, D.C. 20534. Such requests shall be processed pursuant to the provisions of the Freedom of Information Act. The request must be clearly marked on the face of the letter and on the envelope "FREEDOM OF INFORMATION ACT REQUEST", and must describe the record sought, including the approximate dates covered by the record. A former inmate making such a request must provide his or her full name, current address, date and place of birth. In addition, the requester must provide with the request an example of his or her signature, which must be either notarized or sworn under penalty of perjury, and dated within three (3) months of the date of the request.]

Former inmates are encouraged to provide Federal register numbers to assist in properly identifying requested records.

29. [FREEDOM OF INFORMATION ACT REQUESTS ON BEHALF OF AN INMATE OR FORMER INMATE § 513.63. A request for records concerning an inmate or former inmate made by an authorized representative of that inmate or former inmate will be treated as in § 513.61, on receipt of the inmate's or former inmate's written authorization. This authorization must be dated within three (3) months of the date of the request letter. Identification data, as listed in 28 CFR 16.41, must be provided.]

Requesters are encouraged to provide Federal register numbers to assist in properly identifying requested records.

30. [ACKNOWLEDGMENT OF FREEDOM OF INFORMATION ACT REQUESTS
§ 513.64

a. All requests for records under the Freedom of Information Act received by the FOIA/PA Administrator, Office of General Counsel, will be reviewed and may be forwarded to the appropriate Regional Office for proper handling. Requests for records located at a Bureau facility other than the Central Office or Regional Office may be referred to the appropriate staff at that facility for proper handling.

b. The requester shall be notified of the status of his or her request by the office with final responsibility for processing the request.]

31. [REVIEW OF DOCUMENTS FOR FREEDOM OF INFORMATION ACT REQUESTS
§ 513.65. If a document is deemed to contain information exempt from disclosure, any reasonably segregable portion of the record shall be provided to the requester after deletion of the exempt portions. If documents, or portions of documents, in an Inmate Central File have been determined to be nondisclosable by institution staff but are later released by Regional or Central Office staff pursuant to a request under this section, appropriate instructions will be given to the institution to move those documents, or portions, from the Inmate Privacy Folder into the disclosable section of the Inmate Central File.]

32. [DENIALS AND APPEALS OF FREEDOM OF INFORMATION ACT REQUESTS
§ 513.66. If a request made pursuant to the Freedom of Information Act is denied in whole or in part, a denial letter must be issued and signed by the Director or his or her designee, and shall state the basis for denial under § 513.32. The requester who has been denied such access shall be advised that he or she may appeal that decision to the Office of Information and Privacy, U.S. Department of Justice, Suite 570, Flag Building, Washington, D.C. 20530. Both the envelope and the letter of appeal itself should be clearly marked: "Freedom of Information Act Appeal."]

28 CFR 513.32 refers to Section 7 of this Program Statement.

During the appeal and any subsequent litigation, Bureau staff shall assist DOJ staff, including OIP staff, in reviewing contested Bureau documents necessary to resolve the appeal and/or litigation.

33. **[FEES FOR FREEDOM OF INFORMATION ACT REQUESTS § 513.67. Fees for copies of records disclosed under the FOIA, including fees for a requester's own records, may be charged in accordance with Department of Justice regulations contained in 28 CFR 16.10.]**

See further description of fees in Section 16 above.

34. **[TIME LIMITS FOR RESPONSES TO FREEDOM OF INFORMATION ACT REQUESTS § 513.68. Consistent with sound administrative practice and the provisions of 28 CFR 16.1, the Bureau strives to comply with the time limits set forth in the Freedom of Information Act.]**

Staff processing requests for release of information under the FOIA are expected to be familiar with the provisions of 28 CFR 16.1(d), as follows:

- # A requester must be notified of the decision on his or her request within 10 days after its receipt (excluding Saturday, Sunday, and legal public holidays). Conditions for extension of this time are discussed in 28 CFR 16.1(d).
- # Generally, all FOIA requests shall be processed in the approximate order of receipt, unless the requester shows exceptional circumstances exist to justify an expedited response. Examples of exceptional circumstances which might justify an expedited response include the following:
 - ! a threat to life or safety,
 - ! the loss of substantial due process rights, or
 - ! in cases of widespread and exceptional interest to the media, **and** upon approval of DOJ's Office of Public Affairs, possible questions about the Government's integrity which affect public confidence.

Because a decision to take a FOIA request out of order delays other requests, simple fairness demands that such a decision be made only upon careful scrutiny of truly exceptional circumstances.

- ! Regional Counsel shall follow DOJ guidelines as to whether to expedite a particular request because it fits into one of the **first two** exceptions described above.

- ! Requests which are being considered for expedited processing because of the **last exception** described above shall first be sent through the FOIA/PA Administrator to the General Counsel for obtaining DOJ approval.

35. **TRANSITION.** Inmates must remove any copies of PSRs and SORs as listed in Section 12.a.(2)(d)(1) they currently possess no later than 45 days after the effective date of this PS. Each inmate must inspect his or her personal property for photocopies of these documents and then dispose of them.

Inmates possessing these documents when this transition period expires will be subject to disciplinary action for possession of contraband.

Inmates may dispose of their PSRs and SORs by any of the following methods:

- ! Mailing the documents out of the institution to someone of the inmate's choosing;
- ! Destroying or discarding the PSRs or SORs themselves; or
- ! Delivering them to a staff member for destruction.

/s/
Kathleen Hawk Sawyer
Director

DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF PRISONS

**EXEMPTIONS TO DISCLOSURE PROVIDED IN
THE FREEDOM OF INFORMATION ACT**

1. The Freedom of Information Act (5 U.S.C. § 552) provides generally for the disclosure of agency records. Section 552(b) exempts from mandatory disclosure matters that are -

"(1) (A) specifically authorized under criteria established by an Executive order to be kept secret in the interest of national defense or foreign policy and (B) are in fact properly classified pursuant to such Executive order;

(2) related solely to the internal personnel rules and practices of an agency;

(3) specifically exempted from disclosure by statute (other than section 552b of this title), provided that such statute (A) requires that the matters be withheld from the public in such a manner as to leave no discretion on the issue, or (B) establishes particular criteria for withholding or refers to particular types of matters to be withheld;

(4) trade secrets and commercial or financial information obtained from a person and privileged or confidential;

(5) inter-agency or intra-agency memorandums or letters which would not be available by law to a party other than an agency in litigation with the agency;

(6) personnel and medical files and similar files the disclosure of which would constitute a clearly unwarranted invasion of personal privacy;

(7) records or information compiled for law enforcement purposes, but only to the extent that the production of such law enforcement records or information

(A) could reasonably be expected to interfere with enforcement proceedings,

(B) would deprive a person of a right to a fair trial or an impartial adjudication,

(C) could reasonably be expected to constitute an unwarranted invasion of personal privacy,

(D) could reasonably be expected to disclose the identity of a confidential source, including a State, local, or foreign agency or authority or any private institution which

furnished information of a confidential basis, and, in the case of a record or information compiled by a criminal law enforcement authority in the course of a criminal investigation or by an agency conducting a lawful national security intelligence investigation, information furnished by a confidential source,

(E) would disclose techniques and procedures for law enforcement investigations or prosecutions, or would disclose guidelines for law enforcement investigations or prosecutions if such disclosure could reasonably be expected to risk circumvention of the law, or

(F) could reasonably be expected to endanger the life or physical safety of any individual;

(8) contained in or related to examination, operating, or condition reports prepared by, on behalf of, or for the use of an agency responsible for the regulation or supervision of financial institutions; or

(9) geological and geophysical information and data, including maps, concerning wells.

2. Any reasonably segregable portion of a record shall be provided to any person requesting such record after deletion of the portions which are exempt under this subsection."

3. Under 5 U.S.C. § 551, Federal "agency records" are defined **not** to include records of

- (1) the Congress;
- (2) the courts of the United States;
- (3) the governments of the territories or possessions of the United States; or
- (4) the government of the District of Columbia.

DEPARTMENT OF JUSTICE
FEDERAL BUREAU OF PRISONS

PUBLIC INFORMATION

STAFF:

Name
Position Title (past and present)
Grade (past and present)
Salary (past and present)
Duty Station (past and present)
Duty Station Address (past and present)

INMATES:

See list provided in the Program Statement on News Media Contacts
and the Public Information Officer's Handbook (PIO Handbook).

PUBLISHED SYSTEMS OF RECORDS

#:	NAME:	PUBLICATION DATE:

001	Custodial/Security Record System	09/28/78
002	FOIA Record System	09/17/77
003	Industrial Inmate Employment Record System	09/28/78
004	Inmate Administrative Remedy Record System	09/28/78
005	Inmate Central Records System	06/07/84
006	Inmate Commissary Accounts Record System	09/17/77
007	Inmate Physical/Mental Health Record System	09/28/78
008	Inmate Safety/Accident Compensation Record System	09/28/78
009	Federal Tort Claims Act Record System	09/28/78
010	Access Control Entry/Exit System	10/04/95
011	Telephone Activity Record System	04/21/95
012	Office of Internal Affairs Investigative Record System	08/29/95
101	NIC Technical Assistance Resource Persons Directory	04/18/83
102	NIC Field Readers List	04/18/83

(Date)

Re: _____
Our Reg. No: _____
Docket No: _____

Dear _____,

Please advise us as to whether the attached document(s) prepared by your agency may be (1) disclosed to the above inmate and (2) used with respect to the inmate's parole hearing(s).

Disclosure of information contained in an inmate's prison files is governed by a variety of Federal laws, principally the Freedom of Information Act (5 U.S.C. § 552) and the Privacy Act (5 U.S.C. § 552a). Guidelines for the implementation of these laws are given below.

GUIDELINES FOR DISCLOSURE TO A FEDERAL PRISON INMATE

Upon an inmate's request, materials in that inmate's files will be disclosed to that inmate unless there is a legal exemption to such disclosure. Typical examples of documents which may be withheld are those which, if disclosed, might -

- a. constitute a clearly unwarranted invasion of personal privacy;
- b. reveal sources of information obtained upon a legitimate expectation of confidentiality or otherwise endanger the life or physical safety of any person;
- c. lead to a serious disruption of the subject inmate's institutional program, due to the diagnostic or evaluative opinions contained in the document, and which could likely affect the inmate's clearly documented adjustment difficulties;
- d. interfere with ongoing law enforcement proceedings, including administrative investigations; or
- e. enable the requestor to violate any law or threaten the security of a Federal Bureau of Prisons institution through disclosure of law enforcement techniques or procedures.

GUIDELINES FOR DISCLOSURE FOR USE AT THE INMATE'S PAROLE HEARING

A Federal prison inmate must be provided reasonable access to reports or documents to be used by the Parole Commission in making its parole release determination. The Commission, of course, wants to use all the information in the documents you prepare. If you determine that some information may not be disclosed, in accordance with the guidelines listed above, you must prepare a summary of excluded information if it is to be used by the Parole Commission. This summary, as well as the disclosable portions of the document, will then be available to the inmate, **and the Commission thereby be permitted to review the entire document.** The summary need only be phrased in general terms to enable the inmate to respond to the essential allegations made in excluded material. It should not reveal specific information which might compromise a legitimate need for confidentiality.

OPTIONS FOR DISCLOSURE OF INFORMATION

There are three options which exist under Federal law with respect to disclosure to the inmate and to the U.S. Parole Commission of the information prepared by your agency.

Option 1 - You may authorize complete disclosure of the document. The document is available for inmate review and copying. Court disclosure instructions, if any, will be followed.

Option 2 - You may recommend exclusion of a portion or all of the document from disclosure. Please identify the part(s) of the document you consider exempt from disclosure and prepare an adequate summary of the excluded material. The Federal Bureau of Prisons will review the reasons given in accordance with the guidelines listed in this letter. If at least one of the guidelines is met, both the summary and the disclosable portion of the document, if any, will be available to the inmate. If the Federal Bureau of Prisons determines the document to be entirely disclosable, the document will be returned to you, and no copy will be retained by the Federal Bureau of Prisons or for release to the U.S. Parole Commission or to the inmate.

Option 3 - You may refuse to authorize disclosure of the document, or a summary in any form to the inmate. If this option is selected, please provide a memorandum detailing reasons for non-disclosure. The Federal Bureau of Prisons will review the reasons given in accordance with Bureau policy and the guidelines listed in this letter. If at least one of the guidelines is met, the document will be placed in the Inmate Privacy Folder and will not be available for release either to the inmate or to the U.S.

Parole Commission. If the Federal Bureau of Prisons considers the document disclosable, the document will be returned to you, and no copy will be retained for use by the Federal Bureau of Prisons. Please consider carefully before choosing this option.

We appreciate your review of the attached documents with respect to their disclosure. We have enclosed a form for your response. Thank you for your cooperation.

Sincerely,

Warden

Attachments

(Date)

To: Warden: _____
Institution: _____

FROM: (Authorized Agency Representative)
(Agency)

SUBJECT: Disclosure of Information to Federal Inmate and to
U.S. Parole Commission

This replies to your (date) letter in which you forward to us,
and ask that we review, certain document(s) prepared by our
agency to determine whether the document(s) may be disclosed to
the Federal inmate involved and the U.S. Parole Commission.

Document(s) :

The following action may be taken with respect to these
documents:

___ 1. Complete disclosure of the document(s) is (are)
authorized.

The document may be made available for inmate review and
copying.

___ 2. The following portion(s) of the document(s) is (are) to be
excluded on the basis that if disclosed, it might -

___ constitute a clearly unwarranted invasion of
personal privacy;

___ reveal sources of information obtained under a
legitimate expectation of confidentiality or
otherwise endanger the life or physical safety of
any person;

___ lead to a serious disruption of the subject
inmate's institutional program, due to the
diagnostic or evaluative opinions contained in the
document, and which it could likely affect the
inmate's clearly documented adjustment
difficulties;

___ interfere with ongoing law enforcement
proceedings, including administrative
investigations; or

_____ enable the requester to violate any law or
threaten the security of a Federal Bureau of
Prisons institution through disclosure of law
enforcement techniques or procedures.

_____ Other: (specify)
A summary of the excluded material is attached.

- _____ 3. Neither the document nor a summary of the document is to
be disclosed in any form to the inmate.

EXHIBIT E

Defendant's Sentencing Memorandum, filed January 6, 2012, in
Docket No. 6:11-CR-06045, Doc. 23 (W.D.N.Y.), submitted by
then-counsel Adrian J. Burke, Esq.

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF NEW YORK

UNITED STATES OF AMERICA

11-CR-6045DGL

-vs-

SENTENCING MEMORANDUM

JEFFREY BERNECKY,

Defendant

ADRIAN J. BURKE, an attorney duly licensed in the State of New York and admitted to practice in the United States District Court Western District of New York, affirms as follows;

1. I represent Jeffrey Bernecky, the defendant in the above entitled action.
2. The factual representations made in this statement are based upon conversations with my client, Jeffrey Bernecky (hereinafter Jeff), a review of the Presentence Investigation Report (PSR) and the following exhibits:

Exhibit A: Character reference letters written by the mother of my client as well as Richard G. Kellar, Jr.

Exhibit B: Letter written to the Court by Jeffrey Bernecky.

Exhibit C: Correspondence - Linden Oaks Sexual Abuse Treatment Services.

Exhibit D: Letter written to Sentencing Commission by the Department of Justice. These letters will be sent under separate cover.

INTRODUCTION

3. Jeffrey Bernecky appeared before your Honor on May 18, 2011 and plead guilty to two counts charging a violation of Title 18, United States Code Sections 2252(a)(1) and 2252A(a)(5)(B), knowingly possessing child pornography and distribution of child pornography.

4. Jeffrey Bernecky plead guilty to these charges without a plea agreement.

5. The government contends that the applicable guideline range is 210 to 262 months. The PSR provides only a two level adjustment for acceptance for responsibility and a sentencing guideline range of 235 to 293 months.

6. Jeffrey Bernecky has been compliant with all terms of pre-trial release including electronic home monitoring for approximately eighteen months from the time of his arraignment until the time of his sentencing date.

7. Jeffrey Bernecky is currently scheduled for sentencing on January 17, 2012 at 3:30pm.

DISCUSSION

8. The United States Court of Appeals, Second Circuit has questioned the reasonableness of the statutory sentencing scheme as it relates to cases involving possession of child pornography. See United States v. Dorvee, 604 F.3d 84 (2010), United States v. Tutty, 612 F.3d 128 (2010).

9. In light of these decisions, the defendant requests the Court exercise its discretion and render a decision well below the guideline range set forth above.

GENERAL SENTENCING AUTHORITY

10. The United States Supreme Court reaffirmed the importance of reserving sentencing discretion to federal district court judges, holding that:

the federal sentencing statute ... requires a sentencing court to consider Guidelines ranges..., but it permits the court to tailor the sentence in light of other statutory concerns as well.

United States v. Booker, 543 U.S. 220, 245-246 (2005).

11. District courts are required to accurately calculate the Guidelines sentence before considering the §3553(a) factors. United States v. Dorvee, 604 F.3d 84, 92 (2d Cir. 2010). Once the district court properly calculates the Guidelines, it may not presume that a Guidelines sentence is reasonable for any particular defendant, and accordingly, must conduct its own independent review of the §3553(a) sentencing factors. *Id.* At 93.

12. 18 U.S.C. §3553(a) directs the sentencing court to impose a sentence sufficient, but not greater than necessary to comply with the specific purposes of sentencing. These four purposes are:

- (1) to reflect the seriousness of the offense, to promote respect for the law, and to provide just punishment for the offense;
- (2) to afford adequate deterrence to criminal conduct;
- (3) to protect the public from further crimes of the defendant; and
- (4) to provide the defendant with needed educational or vocational training, medical care, or other correctional treatment in the most effective manner.

13. In applying §3553(a) and its parsimony clause, the sentencing court must look to the nature and circumstances of the offense and the history and characteristics of the defendant, the need to avoid unwarranted sentence disparities among defendants with similar records who

have been found guilty of similar conduct, and the Guidelines themselves. Dorvee, 604 F.3d at 93.

14. 18 U.S.C. §3661 directs that no limitation shall be placed on the information which the Court may receive and consider for the purpose of imposing an appropriate sentence.

15. The statutory construction of 18 U.S.C. §3553(a) support the interpretation that the primary factors for the Court's consideration are the nature and circumstances of the offense and the history and characteristics of the defendant. Counsel recognizes the PSR provides the Court some information. This Sentencing Statement is counsel's attempt to highlight for the Court the information regarding the defendant's history and characteristics, additional information about the circumstances of the offense, as well as information regarding the additional factors found in 18 U.S.C. §3553(a).

16. The importance of individualized sentencing is a central theme in federal criminal law.

It has been uniform and constant in the federal judicial tradition for the sentencing judge to consider every convicted person as an individual and every case as a unique study in human failings that sometimes mitigate... the crime and punishment to ensue.

Koon v. United States, 518 U.S. 81, 113 (1996).

17. Lastly, the Supreme Court has reminded the district courts that:

The sentencing judge...has greater familiarity with...the individual case and the individual defendant before him than the Commission or the appeals court.... He is therefore in a superior position to find facts and

judge their import under §3553(a)] in each particular case.

Kimbrough v. United States, 552 U.S. 85, 109 (2007) (internal quotations omitted).

GROUND FOR IMPOSITION OF A NON-GUIDELINE SENTENCE

18. Jeffrey Bernecky is a very young twenty-three year old who should be celebrating his graduation from the Rochester Institute of Technology with a degree in computer science this spring. Instead, he appears before you for sentencing wherein the government contends that an appropriate sentence is somewhere between 210 and 262 months. As I write these numbers, I have difficulty believing that this young man faces such a harsh punishment. Prior to his arrest in July, 2010, Jeff had no prior contact with the criminal justice system. He is a graduate of McQuaid Jesuit High School and was a student in good standing at RIT. As a result of his arrest, he was expelled from school, lost his part time job and has had difficulty finding a job.

19. As I read the letter Jeff's mom wrote to the Court, I had the overwhelming feeling of loss that she and Jeff must be experiencing. She, as well as Jeff, have come to the realization that his future will not be the one they envisioned. Nevertheless, Jeff has remained motivated to address the issues which have brought him before this Court. He has been engaged in therapy with Linden Oaks since October, 2010 and we are including a report from his counselor, Emmanuel Petracca, LCSWR dated March 10, 2011 wherein he writes that Jeff has been fully compliant with treatment and that his risk for a contact sexual offense is low. As the Court can see from the letter of Richard Kellar, Jeff has been a productive member of his family as he performs various duties in the household.

20. Jeff and I met with law enforcement shortly after his arrest and Jeff provided the government with all he knew about other individuals who were involved with child pornography.

He has accepted responsibility for his actions and has taken steps to avoid this conduct. However, the government was unwilling to permit a plea to possession to satisfy the offenses Jeff faces. As a result, he faces a sentence in excess of the statutory maximum of twenty years.

21. It is our position that a sentence of 60 months which is the statutory minimum, more than adequately addresses the factors set forth in 18 U.S.C. §3553(a) which directs the Court impose a sentence sufficient, but not greater than necessary to comply with the specific purpose of sentencing. Such a sentence would certainly reflect the seriousness of the offense as a sentence of five years is significant for an individual with no prior convictions. Furthermore, such a sentence affords adequate deterrence. We submit that the report from LOSATS addresses the factor of protecting the public as the report from that agency indicates Jeff is a low risk to offend. His participation in this program for over one year should provide the Court with some assurance that Jeff does not present a danger to the community and is willing to seek the necessary assistance to maintain a law abiding life.

22. We ask the Court to consider the character and history of Jeff Bernecky before passing sentence. It is clear from his mother's letter that he had a difficult childhood. His parents divorced and he lacked a strong male role model. Jeff recounts to the Court that he was a victim of sexual abuse from the age of twelve years old. As a result, Jeff was introverted and had difficulty forming social relationships. Despite this isolation, Jeff did well in school and held jobs through high school and college. His arrest has given him a greater understanding of the harm caused by his conduct and through treatment he has changed his conduct. We submit that a sentence of sixty months is greater than necessary to achieve the purposes of sentencing. However, we are cognizant of the fact that the Court is required to sentence Jeff to a minimum of sixty months.

23. Jeff is a member of a generation of young people commonly known as the “Digital Generation”. Children and young adults use computers and the Internet for many of their daily activities more so than any other age group. A Nation Online: How Americans Are Expanding Their Use Of The Internet, <<http://www.ntia.doc.gov/ntiahome/dn/html/toc.htm>. A positive use of computers and the Internet includes assisting students with homework. No longer must one trek to the library to conduct research for a paper or assignment. The knowledge of the world is now a mouse click away. However, use of the Internet can also expose children and young adults to unsafe or inappropriate online content.

24. According to The National Academics Press, Internet communication and the anonymity with which one can seek out a great variety of information on the Internet are highly appealing to children in the years between pre-adolescence(ages 10-13) and late adolescence (ages 15-18). That is because it is during those years that these children are struggling to develop their own identities. It is also the time in their lives that they will take risks that adults would not. Thirdly, it is also a time in their lives when hormonal changes tend to stimulate an adolescent’s interest in sexual matters. The impersonal nature of the Internet often becomes a forum to feed their curiosity and the electronic media also tends to depersonalize reality. See *Children, Media, and Exposure to Sexually Explicit Material*, The National Academies Press, http://www.nap.edu/readingroom.php?book=youth_internet&pages=ch5html.

25. A recent article commented on sexting legislation in Pennsylvania. The proposed legislation would make sexting a crime for teenagers between the ages of 13 and 17. Some argue teens should be educated about the negative consequences of sending personal images via a text message and the Internet rather than enacting harsh measures to criminalize texting. The article, *Sexting: is it a crime*” *Proposed PA legislation would make it one*, states that technology today

allows young adults to explore their sexuality without physical contact, while failing to recognize the risks involved. Pennlive.com, February 7, 2010,

<http://www.pennlive.com/editorials/index.ssf/2010/02sexting_is_it_a_crime_proposed.html.

U.S.S.G. §2G2.2 IS FUNDAMENTALLY DIFFERENT FROM MOST OTHER
GUIDELINES AND MUST BE APPLIED WITH GREAT CARE

26. Courts have recognized the struggle sentencing judges encounter when considering the guideline range in these types of cases. Moreover, Courts have identified these specific guidelines (§2G2.2) which often result in significantly high sentences almost always for first offenders. See, United States v. Grover, 09-cr-6089, Sentencing Transcript at 19 (W.D.N.U. Sept. 25, 2009), [hereinafter Grover].

27. These challenges were similarly addressed in Dorvee, 604 F.3d at 94. That panel acknowledged the §2G2.2 guideline is fundamentally different from most and that, unless applied with great care, can lead to unreasonable sentences that are inconsistent with what §3553 requires. *Id.*

28. The Court in Dorvee and Grover, agree the §2G2.2 guidelines are not based on empirical data derived from past sentencing practices. Rather, that guideline section was amended several times at Congress' direction recommending harsher penalties. See, Grover at 20 and Dorvee, 604 F.3d at 95.

29. Similarly, the Department of Justice's Office of Policy and Legislation recognizes the problems inherent in the application of these specific guidelines. In a recent letter to the Sentencing Commission, the Department of Justice asked the Commission to review "and consider amendments to those guidelines that have lost the backing of a large part of the judiciary. These reviews should begin with the guidelines for child pornography possession

offenses.” (See, page 3 of letter to the Honorable William K. Sessions, III, United States Sentencing Commission, by Jonathan J. Wroblewski, Director, Office of Policy and Legislation, Department of Justice, Criminal Division, dated June 28, 2010, attached hereto as Ex. D).

30. The irrationality in the application of the §2G2.2 guidelines to the instant case is clear. A 23 year old immature college student with no prior criminal record, no prior instances of sexual contact or “acting out” with children, is facing a recommended sentencing range which exceeds the statutory maximum. The base offense level for a violation of 18 U.S.C. §2252(a)(1) is 22 which would result in a guideline range of 41 to 51 months. However, the government contends that five separate guideline adjustments apply to Jeff’s conduct as I submit is the case in the vast majority of these matters. As such, Jeff’s guideline range is increased by a multiple of over 5. Obviously, the recommended advisory sentence range is disproportionate to the sentencing factors present in Jeffrey’s case. The recommended range is inconsistent with the directions of 18 U.S.C. §3553 which requires Your Honor to impose a sentence sufficient, but not greater than necessary.

31. I acknowledge the seriousness of this offense, however, Jeff’s arrest alone has been a significant deterrent to criminal conduct. There is no evidence that he presents any danger to the public either as a result of the conduct he has admitted or his potential to commit future crimes.

32. Jeff has suffered more than most individuals arrested for similar offenses because he has lost so much. He will never enjoy the future he envisioned. He may never recoup the investment he made in his education.

33. I would submit that Jeff has come to a greater understanding and awareness of the impact of his action on others, especially the abused children he was viewing. His letter to the Court says it so much more poignantly that I could express.

CONCLUSION

34. Jeff cooperated with law enforcement from the moment they encountered him. Since his arrest, Jeff has voluntarily engaged in counseling, cooperated fully with United States Probation(including wearing an ankle bracelet), the Court and our office. Jeff is extremely remorseful and lives with the shame of what he did. Jeff will continue to live with that shame. Jeff will be required to register under SORA and publicly disclose the location of his residence, place of employment, and place of education. He will register as a sex offender which will serve as continued punishment to him and to his future family.

35. Based on all of the above, it is respectfully requested that Your Honor consider the history and characteristics of Jeffrey Bernecky, the nature and circumstances of the offense, the human failings that sometimes mitigate the crime and punishment, the dangers Jeff will likely face in prison, and the belief by many that the sentencing guideline range in Jeff's case is in violation of §3553 because it recommends a sentence far greater than necessary to satisfy the purposes of sentencing, and impose of sentence of sixty months, along with a five 1 year term of supervised release along with any reasonable terms and conditions that this Court deems appropriate.

Dated: January 6, 2012

s/Adrian J. Burke
Adrian J. Burke, Esq.
Burke and Burke
Attorneys for Defendant
16 West Main Street, Suite 100
Rochester, New York 14614

Telephone: (585) 232-5958
Adrian@burkeandburkelaw.com

Cc: Tiffany Lee, Assistant US Attorney
David B. Spogen, US Probation Office

**State of New York
Monroe County Supreme & County Courts**

-----X

In re: Matter of the Application for a
Risk Level Determination Pursuant to
Article 6-C of the Correction Law.
(Sex Offender Registration Act) as to:

Index No: None Provided by Clerk
Hearing Date: September 11, 2026
Before: Hon. Karen Bailey Turner, J.C.C.

JEFFREY BERNECKY,
NYSID No. OS6430
Respondent, Pro Se.

**MOTION TO ADJOURN THE
SEPTEMBER 11, 2026 HEARING**

-----X

I. RELIEF SOUGHT

Respondent moves to adjourn the risk-level classification hearing currently scheduled for September 11, 2026, to a date sufficient to permit resolution of Respondent's contemporaneously filed Application for Assignment of Counsel, production of the materials sought in Respondent's contemporaneously filed Demand for Disclosure and Subpoena Duces Tecum, and reasonable time for counsel to review those materials and prepare.

II. STATEMENT OF FACTS

Respondent has, contemporaneously with this motion, filed an Application for Assignment of Counsel, noting that the August 4, 2026 counsel-status deadline set by the Court's July 30, 2026 notice letter has passed. Respondent mailed the counsel-status form himself, indicating his request for assigned counsel, but as of the date of this motion has no confirmation that it has been received or processed, and no assigned counsel has yet been confirmed. Given ordinary mail transit time on top of the processing and assignment process itself, the practical window remaining for any newly assigned counsel to review this matter and meaningfully consult with Respondent before September 11, 2026 is short and shrinking, independent of whatever materials are produced in response to the accompanying Demand for Disclosure.

Respondent has also, contemporaneously with this motion, served a Demand for Disclosure and, if necessary, Subpoena Duces Tecum, identifying a genuine dispute concerning the determinations in the Board of Examiners of Sex Offenders' Recommendation Package and demanding, among other things, both federal Presentence Investigation Reports the Case Summary draws from, the Board's June 1, 2012 Position Statement, the 2012 and 2018 judgments of conviction, polygraph-related materials, and Board-probation communications concerning Respondent.

Correction Law § 168-n(3) requires that Board recommendation materials be provided at least twenty days before the hearing. Even accounting for that window, the volume and nature of the material demanded — including two federal PSRs or, at minimum, the specific portions of each that the Board's Case Summary relies on — make it unlikely that all demanded materials can be produced, reviewed, and incorporated into hearing preparation by September 11, 2026, particularly if any item must be obtained by subpoena rather than voluntary production.

III. ARGUMENT

A. Correction Law § 168-n(3)'s Own Adjournment Clause Requires Adjournment Where There Is a Genuine Dispute Requiring Materials to Be Obtained

Correction Law § 168-n(3) provides: "Where there is a dispute between the parties concerning the determinations, the court shall adjourn the hearing as necessary to permit the sex offender or the district attorney to obtain materials relevant to the determinations from the state board of examiners of sex offenders or any state or local facility, hospital, institution, office, agency, department or division. Such materials may be obtained by subpoena if not voluntarily provided to the requesting party."

This clause is mandatory — "the court shall adjourn," not "may adjourn" — once a genuine dispute concerning the Board's determinations exists and materials relevant to that dispute must be obtained. Respondent's accompanying Demand for Disclosure and Subpoena Duces Tecum identifies exactly that dispute and demands exactly those materials. Adjournment is necessary here for the reason the statute itself contemplates: the demanded materials will not be in hand, let alone

reviewed, by September 11, 2026, particularly to the extent production requires a subpoena rather than voluntary compliance.

B. The General Adjournment-Discretion Standard Also Supports Adjournment

Independent of § 168-n(3)'s own mandatory clause, New York courts weigh, in deciding an adjournment request of this kind, whether the evidence sought is material, whether the request is made in good faith rather than for purposes of delay, and whether the need for adjournment results from the movant's own lack of diligence. New York applies this standard in the SORA context specifically. *See People v. Eldridge*, 2024 NY Slip Op 05117 (App. Div., 2d Dep't Oct. 16, 2024) (reversing denial of an adjournment sought so newly consulted counsel could review documents that could affect the respondent's classification, and holding that an imminent release date was not a sufficient reason to deny the request).

The materials demanded here bear directly on the reliability of the Case Summary's factual assertions and, through them, on the risk-level determination itself; the request is made to permit counsel and Respondent a genuine opportunity to test the Board's Recommendation Package, not to delay the proceeding; and the need for the adjournment arises from the compressed timeline created by the recent passage of the counsel-status deadline and the volume of material that must still be obtained, not from any lack of diligence on Respondent's part.

C. Newly Assigned Counsel Needs Both Time and the Demanded Records to Prepare

If the Court grants Respondent's Application for Assignment of Counsel, newly assigned counsel will need adequate time to become familiar with the record and to review whatever materials are produced or subpoenaed in response to the accompanying Demand for Disclosure before counsel can meaningfully represent Respondent at a contested classification hearing. Assignment on the eve of the hearing, with no realistic opportunity to review the record or the materials sought above, would make the assignment a formality rather than the meaningful representation Correction Law § 168-n(3) contemplates. An adjournment here is necessary to

avoid exactly that outcome — assigning counsel and demanding materials on a timeline that affords no realistic opportunity to use either before September 11, 2026.

D. A Short Adjournment Causes No Identified Prejudice to the People's Notification Interest

The People's interest that ordinarily counsels against adjournment in a SORA proceeding is the public-safety and community-notification interest reflected in the statute's own hearing notice, which warns that failure to appear "may result in a longer period of registration or a higher level of community notification." A short adjournment here does not implicate that interest. Respondent has maintained his sex-offender registration continuously since his 2018 conviction — on his own representation, including during a period of incarceration in a New Jersey facility when he was not legally required to do so — and his current registration and whereabouts remain a matter of record independent of when this hearing concludes. A brief adjournment sufficient to permit counsel assignment and document production leaves that record unchanged.

IV. WHEREFORE

WHEREFORE, Respondent respectfully requests that this Court adjourn the September 11, 2026 hearing to a date sufficient to permit (1) resolution of the pending Application for Assignment of Counsel; (2) production of the materials demanded in the accompanying Demand for Disclosure and Subpoena Duces Tecum, and execution of any subpoena duces tecum found necessary; and (3) reasonable time for assigned counsel to review those materials and prepare for a contested hearing; and for such other and further relief as the Court deems just and proper.

Dated: [____], 2026
Rochester, New York

Respectfully submitted,

Jeffrey Bernecky
Respondent, Pro Se
312 Lake Ave #7

Rochester, NY 14608
(585) 202-7634

**State of New York
Monroe County Supreme & County Courts**

-----X

In re: Matter of the Application for a
Risk Level Determination Pursuant to
Article 6-C of the Correction Law.
(Sex Offender Registration Act) as to:

Index No: None Provided by Clerk
Hearing Date: September 11, 2026
Before: Hon. Karen Bailey Turner, J.C.C.

JEFFREY BERNECKY,
NYSID No. OS6430
Respondent, Pro Se.

**APPLICATION FOR ASSIGNMENT
OF COUNSEL**

-----X

I. RELIEF SOUGHT

Respondent Jeffrey Bernecky wants counsel assigned to represent him at the risk-level classification hearing scheduled for September 11, 2026, and respectfully applies, pursuant to Correction Law § 168-n(3), for that assignment now — not on the eve of the hearing. Respondent requests that the Court first determine whether he was previously found eligible for assigned counsel in the underlying federal criminal proceedings and, if so, assign counsel on that basis; in the alternative, and without conceding that no such prior finding exists, Respondent applies for a finding that he is financially unable to retain counsel and requests assignment of counsel pursuant to County Law Article 18-B on that ground. Whichever path the Court uses, Respondent asks that assignment happen with enough time before September 11, 2026 for assigned counsel to actually meet and confer with him, evaluate the record described in his contemporaneously filed Demand for Disclosure and Subpoena Duces Tecum, and prepare — not counsel named the day of the hearing with no opportunity to do any of that.

II. STATEMENT OF FACTS

By letter dated July 30, 2026, the Monroe County Supreme & County Courts notified Respondent of the September 11, 2026 hearing date before this Court and enclosed a counsel-status form directing him to indicate whether he wished to have counsel appointed, had retained counsel,

or already had counsel assigned, and to return the completed form no later than August 4, 2026. Respondent mailed that form himself, indicating his request for assigned counsel. That deadline has now passed, and as of the date of this application Respondent has no confirmation that the form was received or processed, and no assigned counsel has been confirmed. Respondent files this formal application in addition to the informal form, out of an abundance of caution, so that his request for counsel is squarely before this Court in a form the Court can act on directly.

The Board of Examiners of Sex Offenders' recommendation package, forwarded under cover memorandum dated July 23, 2026, itself advises Respondent that he "will be advised of the right to be represented by counsel at the hearing and that counsel will be appointed if it is determined that [he is] financially unable to retain counsel."

Respondent was the subject of two prior federal criminal proceedings in the United States District Court for the Western District of New York: a 2012 conviction, Docket No. 6:11-CR-06045, and a 2018 conviction, Docket No. 6:18-CR-06018-DGL-MWP. Respondent does not presently have in hand a docket entry or order reflecting whether he was found eligible for appointment of counsel under the Criminal Justice Act, 18 U.S.C. § 3006A, in either proceeding; if the Court's own records or the Clerk's file contain such a finding, Respondent asks that it be used as the basis for assignment under the first path set out below. Respondent is, in any event, currently unable to retain counsel and is prepared to submit a financial affidavit setting out his income, assets, and expenses in support of a finding of financial inability under the second, independent path.

The hearing is scheduled for September 11, 2026. With the counsel-status deadline already passed and no confirmed appointment in place, immediate action on this application is necessary to allow assigned counsel a meaningful opportunity to prepare, including to pursue the disclosure and, if necessary, subpoena relief sought in Respondent's contemporaneously filed Demand for Disclosure and Subpoena Duces Tecum, and to make use of the adjournment sought in Respondent's contemporaneously filed motion if the demanded materials cannot otherwise be reviewed in time.

III. STATUTORY BASIS

Correction Law § 168-n(3) provides two independent, mandatory paths to assignment of counsel in a SORA risk-level classification proceeding.

First: "Upon receipt of the board's recommendation, the sentencing court shall determine whether the sex offender was previously found to be eligible for assigned counsel in the underlying case." Correction Law § 168-n(3). Where such a finding was previously made, "the court shall assign counsel to represent the offender, pursuant to article eighteen-B of the county law." *Id.*

Second, and independent of the first: "If the sex offender applies for assignment of counsel and the court finds that the offender is financially unable to retain counsel, the court shall assign counsel to represent the sex offender pursuant to article eighteen-B of the county law." *Id.*

Both paths are mandatory once their predicate is shown — the statute says "shall assign," not "may assign." The statute further places the burden on the Court to make the threshold determination "upon receipt of the board's recommendation," which was forwarded to the Court and to Respondent on July 23, 2026. This application is accordingly not premature; given the passage of the August 4, 2026 counsel-status deadline without a confirmed resolution, it is overdue.

Assignment now, rather than on or immediately before the hearing date, is necessary so that counsel has a meaningful opportunity to prepare. That preparation includes meeting and conferring with Respondent, reviewing the Board's recommendation package, pursuing the disclosure and subpoena relief sought in Respondent's accompanying Demand for Disclosure and Subpoena Duces Tecum, and, if the materials sought cannot be obtained and reviewed before September 11, 2026, making use of the adjournment sought in Respondent's accompanying motion. Counsel assigned on or immediately before the hearing date, with no realistic opportunity to do any of that, would be assigned in name only; this application and its companion motion to adjourn are intended to avoid exactly that outcome.

IV. WHEREFORE

WHEREFORE, Respondent respectfully requests that this Court:

1. determine, pursuant to Correction Law § 168-n(3), whether Respondent was previously found eligible for assigned counsel in the underlying federal criminal proceeding(s), and if so, assign counsel to represent him pursuant to County Law Article 18-B;
2. in the alternative, and upon Respondent's application under Correction Law § 168-n(3), find that Respondent is financially unable to retain counsel and assign counsel to represent him pursuant to County Law Article 18-B;
3. direct that any such assignment occur with sufficient time before September 11, 2026 for assigned counsel to meet with Respondent, review the record, and prepare, consistent with the relief sought in Respondent's contemporaneously filed motion to adjourn; and
4. grant such other and further relief as the Court deems just and proper.

Dated: [____], 2026
Rochester, New York

Respectfully submitted,

Jeffrey Bernecky
Respondent, Pro Se
312 Lake Ave #7
Rochester, NY 14608
(585) 202-7634

**State of New York
Monroe County Supreme & County Courts**

-----X

In re: Matter of the Application for a.
Risk Level Determination Pursuant to.
Article 6-C of the Correction Law.
(Sex Offender Registration Act) as to:

Index No: None Provided by Clerk
Hearing Date: September 11, 2026
Before: Hon. Karen Bailey Turner, J.C.C.

JEFFREY BERNECKY,
NYSID No. OS6430

**MOTION FOR FUNDS TO RETAIN A
FORENSIC RISK-ASSESSMENT
EXPERT PURSUANT TO COUNTY
LAW § 722-c**

Respondent, Pro Se.

-----X

I. RELIEF SOUGHT

Respondent moves, pursuant to County Law § 722-c, for an order authorizing funds to retain a forensic risk-assessment expert to evaluate Respondent and, if the evaluation supports it, to offer an opinion addressed to the "threat to public safety" finding Correction Law § 168-l(6) requires before Respondent may be classified a Risk Level Three sex offender. This motion is filed as a separate, standalone application, not appended to or incorporated within any other filing in this matter, so that it may be considered on its own terms. Because County Law § 722-c contemplates this application being made and decided in an ex parte proceeding, Respondent respectfully requests that this Court (a) hear and decide this application ex parte, without the District Attorney's presence or input, consistent with the statute's own procedure and the ordinary practice for applications of this kind; and (b) enter an order sealing this motion, all supporting papers, and any order granting or denying it, pursuant to Judiciary Law § 2-b(3) and 22 NYCRR 216.1, on the ground that Respondent's decision whether and how to use the results of a privately funded forensic evaluation is a matter of defense strategy the premature disclosure of which this ex parte procedure is specifically designed to prevent, and Respondent requests that the Court enter the written good-cause finding 22 NYCRR 216.1 requires as part of that order.

II. STATEMENT OF FACTS

Respondent is indigent. Respondent has contemporaneously filed an Application for Assignment of Counsel, pursuant to Correction Law § 168-n(3) and County Law Article 18-B, on the ground that he is financially unable to retain counsel; that application, and the facts supporting it, are incorporated here by reference, and Respondent is prepared to submit the same financial affidavit, or an updated version of it, in support of this motion. Once counsel is assigned, assigned counsel should review this application and, if appropriate, adopt, ratify, or refile it in counsel's own name.

The Board of Examiners of Sex Offenders' recommendation package — forwarded under cover memorandum dated July 23, 2026, and consisting of a Risk Assessment Instrument, a four-page Case Summary, and a Sex Offender Designation Form — recommends that Respondent be classified a Risk Level Three sex offender. That recommendation rests entirely on Override 1, triggered by Respondent's 2012 prior felony sex-crime conviction. The Case Summary states that the prior conviction "automatically results in a presumptive Risk Level III, as this provides compelling evidence that he poses a serious risk to public safety that is not captured by scoring alone." Case Summary at 3. Nowhere in the Board's recommendation package does any psychiatric or psychological evaluation, actuarial risk instrument beyond the RAI itself, or expert opinion of any kind address Respondent's current risk to public safety. As set out more fully in Argument B of Respondent's contemporaneously filed Memorandum of Law in Support of a Level Two Risk Classification ("Memorandum of Law"), Correction Law § 168-l(6) authorizes a Level Three classification only where both a high risk of repeat offense and an independent threat to public safety are shown; Respondent does not contest the first element, but the Board's recommendation package offers no evidence — clinical, actuarial, or otherwise — addressed to the second.

The September 11, 2026 hearing date makes prompt consideration of this motion necessary. Respondent has not yet retained a specific forensic risk-assessment expert, consistent with the ex parte, need-first procedure County Law § 722-c contemplates; Respondent intends to identify and retain a qualified expert promptly upon a favorable ruling on this motion, and, if the

Court directs, will submit the proposed expert's qualifications and a projected scope of services and cost for the Court's approval before funds are expended. Should the Court grant this application, Respondent will require time to arrange the evaluation and, if it supports his position, obtain a report or opinion before the hearing or any adjourned date — a further, independent reason this motion should be decided promptly and, if necessary, in conjunction with Respondent's contemporaneously filed motion to adjourn.

III. STATUTORY BASIS

County Law § 722-c authorizes a court, upon an ex parte finding "that investigative, expert or other services are necessary" and that the person seeking them "is financially unable to obtain them," to "authorize counsel . . . to obtain the services on behalf of the defendant or such other person." The statute extends this authority, by its own text, to "the defendant or other person described in section two hundred forty-nine or section two hundred sixty-two of the family court act, article six-c of the correction law or section four hundred seven of the surrogate's court procedure act." County Law § 722-c. Article six-c of the Correction Law is the Sex Offender Registration Act. The Legislature, not a court reaching by analogy, wrote SORA respondents directly into New York's general indigent-expert-funding statute, on the same footing as respondents in Family Court and Surrogate's Court proceedings.

The Second Department has confirmed that this authority reaches SORA proceedings specifically: "Although a defendant in a SORA proceeding may be entitled to the appointment of an expert upon a court's finding that expert services are necessary (see County Law § 722-c), the Supreme Court here did not err in declining the defendant's request for the appointment of a psychiatrist to assist him in seeking a downward departure. The defendant did not establish that appointment of an expert was necessary." *People v. Linton*, 94 A.D.3d 962, 962-63 (2d Dep't 2012).

No provision of SORA itself gives Respondent a right to a forensic evaluation. Correction Law Article 6-C's twenty-four sections contain no mechanism, funded or otherwise, by which a

respondent may obtain a psychological or psychiatric evaluation to contest the Board's own dangerousness conclusion; the Board itself "may consider" psychological or psychiatric profiles in developing its Guidelines, Correction Law § 168-l(5)(e), but that describes an input into the Board's own rulemaking, not a tool available to the individual offender. County Law § 722-c is accordingly not a request that this Court read something into SORA that is not there. It is a request that this Court apply a separate statute the Legislature has already made available to SORA respondents by name.

IV. ARGUMENT

A. County Law § 722-c Reaches This Proceeding, and Respondent Is Indigent

County Law § 722-c's applicability here is not a matter of interpretation. The statute names "article six-c of the correction law" — SORA — as one of the proceedings its funding mechanism covers, on the same terms as Family Court Act and Surrogate's Court Procedure Act proceedings. Respondent's indigency is established in his contemporaneously filed Application for Assignment of Counsel, incorporated by reference above, and this motion asks the Court to make the same financial-inability finding for purposes of § 722-c that it is separately asked to make for purposes of assigning counsel under Correction Law § 168-n(3) and County Law Article 18-B.

B. Override 1 Supplies No Evidence at All on the Independent "Threat to Public Safety" Element, and a Forensic Evaluation Is the Only Available Mechanism to Generate Any

Correction Law § 168-l(6) authorizes a Level Three classification only "if the risk of repeat offense is high and there exists a threat to the public safety" — two elements, joined by "and," each requiring its own proof. As Argument B.1 of the accompanying Memorandum of Law sets out in full, Override 1 is triggered by nothing more than the existence of a qualifying prior conviction; it answers, at most, whether Respondent presents a high risk of repeat offense. It does not, and by its own terms cannot, supply an individualized finding on the separate question whether Respondent currently presents a threat to public safety. The Board's own Case Summary confirms this: it treats the bare fact of the 2012 conviction as itself "compelling evidence" of a public-safety threat,

without citing any clinical finding, actuarial instrument, or expert opinion in support. Case Summary at 3.

The result is that the record before this Court contains no evidence of any kind — not weak evidence, none — addressed to the specific statutory element on which Respondent's classification actually turns. That gap is not a reason to deny this motion; it is the necessity showing the motion is built on. A forensic risk-assessment evaluation is not sought here as generic assistance in arguing Respondent's position, and it is not offered as a substitute for the legal arguments Argument A and Argument B of the accompanying Memorandum of Law already make. It is sought because it is the only mechanism presently available to Respondent to generate any evidence at all on the one statutory element the Board's own recommendation package leaves entirely unaddressed. As Argument B.4 of the Memorandum of Law develops further, Mental Hygiene Law Article 10 — the proceeding structurally closest to what § 168-l(6)'s public-safety finding is supposed to represent — not only requires the State to build its own dangerousness case on clinical evidence, but funds an examiner of the respondent's own choosing when the respondent cannot otherwise afford one. Mental Hygiene Law § 10.06(e). SORA gives Respondent no comparable right by its own text. County Law § 722-c is the only means by which he can obtain, at public expense, the kind of evidence Article 10 would have given him as a matter of course.

Level Three's practical consequences make this more than an academic gap. A Level Three offender must personally verify his address with local law enforcement every ninety calendar days, Correction Law § 168-h — an obligation with no Level Two equivalent — and a Level Three offender's public disclosure additionally includes his place of employment. Correction Law § 168-l(6)(c). Whatever this Court ultimately concludes about the merits of Respondent's classification, the consequence of getting the "threat to public safety" finding wrong is real, ongoing, and more severe at Level Three than at Level Two, and the record on that specific question is, at present, entirely one-sided: the Board has offered its own unattributed narrative, and Respondent has had no means, funded or otherwise, to test it.

That asymmetry cuts one way, not both. Correction Law § 168-o(3), addressed in Argument B.5 of the Memorandum of Law, lets the District Attorney petition to move an offender's classification upward later, on real post-classification evidence — a new crime or a supervision violation indicating increased risk. It gives no comparable mechanism for correcting a classification downward once made. If this Court classifies Respondent a Level Three offender today without any clinical evidence on the public-safety element, and a later evaluation or the passage of time under supervision were to show that classification was wrong, § 168-o supplies no path to undo the years of quarterly in-person verification and employer disclosure Respondent will have carried in the meantime. The necessity for getting the public-safety finding right now, with the only kind of evidence capable of addressing it, is accordingly greater than it would be if SORA allowed correction in both directions. It does not.

C. The General Recidivism Research Marshaled in This Record Establishes Why This Case Presents a Genuinely Contested, Individualized Question

Respondent's contemporaneously filed Memorandum of Law marshals, in support of his position that he is not a threat to public safety, three sources of general contact-offense recidivism data: the Court of Appeals' own finding that only approximately four percent of the offenders in the underlying validation studies were later convicted of a new hands-on sexual offense, *People v. Gillotti*, 23 N.Y.3d 841, 845 (2014); the United States Sentencing Commission's 2012 recidivism findings for federal child-pornography offenders; and the Board of Examiners' own June 2012 Position Statement. Respondent offers those sources here for a narrower and different purpose than the one they serve in the Memorandum of Law. They are not offered as evidence supporting Respondent's classification argument on the merits, and they are not offered as a substitute for the forensic evaluation this motion requests. They are offered to establish that the question Override 1 never addresses — where, within the population Gillotti describes, this particular Respondent actually falls on the contact-recidivism risk spectrum — is a genuinely contested, individualized factual question that the current record does not resolve in either direction.

New York's own case law confirms that this is precisely the kind of question only an individualized showing can answer. The Second Department has held that a defendant may not rely on a low score on a general, validated actuarial instrument as a substitute for the individualized showing SORA's risk-assessment structure requires, though it left open reliance on risk factors specifically and individually identified as applicable to that particular defendant. *People v. Curry*, 2017 NY Slip Op 09184 (2d Dep't 2017). The Court of Appeals reached the same conclusion from the opposite direction in *Gillotti* itself, holding that "there is nothing inherent in child pornography offenses that convinces us to completely ignore the plain language of the guidelines" and confirming that the guidelines' individualized structure controls over any categorical, offense-type-based exemption. *Gillotti*, 23 N.Y.3d at 858. General population data of this kind identifies a question; locating any particular respondent within it requires individualized proof, not a citation to the aggregate.

Respondent flags this distinction affirmatively, rather than leaving it for the Board to raise it first. The alternative framing is available, and it would be wrong: a court could reasonably ask why public funds are needed for an expert if the general research already supplies the answer. It does not. The research identifies a population-level range within which contact-recidivism risk varies; only an individualized clinical and actuarial evaluation of Respondent himself can locate him within that range, and that evaluation — not a citation to the literature — is the entire relief this motion seeks.

Respondent is aware of no New York or other authority squarely deciding, in an expert-funding-necessity posture, whether general population risk research may be used this way. This argument is accordingly presented as one of first impression, grounded in the individualized-proof principle *Curry* and *Gillotti* already apply on the merits, and not as a settled or previously accepted theory.

D. New York's Own Necessity Standard Is a Reasonable-Probability, Specific-Facts Test, and This Motion's Showing Fits the Pattern of Cases That Grant Relief

New York courts applying County Law § 722-c ask whether the application supplies, in the formulation attributed to *People v. Lowery*, 7 Misc 3d 1032(A) (White Plains City Ct. 2005), "specific factual details which show to a reasonable probability that the forensic services would aid in the defense or produce relevant evidence." Courts applying that standard have consistently denied funding where the application states a conclusion rather than a fact-specific connection between the requested service and a contested issue in the case. See, e.g., *People v. Rockwell*, 18 A.D.3d 969 (3d Dep't 2005) (no error denying investigator funds where the defendant only asserted that an investigator would be helpful); *Matter of Garfield M.*, 128 A.D.2d 876 (2d Dep't 1987) (no abuse of discretion denying an independent psychological expert where the record already contained an extensive evaluation on the same subject). Neither defect is present here. Respondent does not assert, in the abstract, that an expert would be helpful; Section B above identifies the specific statutory element — the independent "threat to public safety" finding — the current record leaves entirely unaddressed. And unlike the defendant in *Garfield M.*, Respondent faces no existing evaluation of that element to duplicate; the Board's own recommendation package contains none.

Where an application instead identifies a specific, unaddressed evidentiary gap, New York courts have granted § 722-c funding, and reversed denials, as an improvident exercise of discretion. *People v. Hatterson*, 63 A.D.2d 736 (2d Dep't 1978) (denial of psychiatric funds improvident where the prosecution had offered expert psychological testimony the defense had no means to test). Most directly on point, the First Department has already held that County Law § 722-c's necessity inquiry incorporates the same constitutional concern the United States Supreme Court articulated in *Ake v. Oklahoma*, 470 U.S. 68 (1985): "when a state undertakes to prosecute an indigent defendant, it must also take whatever measures are necessary to assure that the defendant is able to participate meaningfully in the proceeding," and an indigent applicant need not show that a contested issue "might succeed," but only that it "will be an important factor" in the proceeding. *People v. Vale*, 133 A.D.2d 297, 299-300 (1st Dep't 1987). The *Vale* court reversed the denial of the § 722-c application before it as "most improvident." *Id.* Respondent's showing here is, if

anything, the more direct case: not a contested issue that may become important, but a statutory element the Board's own record already concedes it has not addressed at all.

Federal courts applying the analogous indigent-services statute, 18 U.S.C. § 3006A(e), ask substantially the same question under what several circuits call the "private attorney" standard: whether "a reasonable attorney would engage such services for a client having the independent financial means to pay for them." *United States v. Alden*, 767 F.2d 314, 318-19 (7th Cir. 1984) (quoting *United States v. Bass*, 477 F.2d 723, 725 (9th Cir. 1973)). Respondent cites this federal authority not as binding law, but as reinforcement of a standard New York's own courts have already adopted: Vale's reasonable-probability, important-factor inquiry and Alden's private-attorney inquiry ask, in substance, the same question, and New York need not look outside its own case law to reach the same result those federal cases reach.

Monroe County's own courts have already applied this standard to grant § 722-c relief on a closely analogous theory, and the Fourth Department — the department that will govern any appellate review of this Court's decision — affirmed. In *People v. Bailey*, 47 Misc 3d 355 (County Ct, Monroe Co. 2014), *aff'd* 2016 NY Slip Op 07490 (4th Dep't 2016), the County Court granted § 722-c funding on the theory that the state of the forensic science bearing on a contested scientific question had become unsettled, such that only individualized expert analysis could resolve it for the case at hand. *Bailey* arose in a different procedural posture — a post-conviction motion under CPL Article 440 challenging a Shaken Baby Syndrome conviction on unsettled forensic science, not a pre-hearing necessity motion of this kind — but its underlying reasoning transfers directly here: the general recidivism research discussed in Section C above shows that where a given respondent falls on the contact-recidivism risk spectrum is unsettled without individualized analysis, and *Bailey* confirms that this Court's own department has already accepted that kind of showing as sufficient to warrant funding.

E. Linton Confirms This Relief Is Available in a SORA Proceeding Specifically — and Shows What an Insufficient Showing Looks Like, a Mistake This Motion Is Built to Avoid

The general § 722-c standard discussed in Section D above is confirmed, in the SORA context specifically, by Linton. Linton establishes both halves of what this motion needs to show. It confirms that "a defendant in a SORA proceeding may be entitled to the appointment of an expert upon a court's finding that expert services are necessary," 94 A.D.3d at 962-63 — the relief Respondent seeks here is not novel. But it also shows, candidly, what an insufficient showing looks like: the Second Department affirmed denial of the defendant's request because he sought "the appointment of a psychiatrist to assist him in seeking a downward departure," without tying that request to any specific gap in the record before the court. *Id.* Linton's own opinion does not describe what showing that defendant actually made beyond that generic framing — only that it was not enough.

This motion is built to avoid exactly that mistake. Respondent is not asking this Court to fund an expert to help him argue for a departure in the abstract. Respondent is identifying a specific, currently unaddressed statutory element — the independent "threat to public safety" finding Correction Law § 168-l(6) requires — on which the Board's recommendation package offers no evidence of any kind, and asking this Court to fund the one mechanism available to generate any evidence on that element at all. That is the kind of record-grounded necessity showing Linton's own defendant failed to make, not a repetition of it.

F. The Compensation Cap Should Be Confirmed as a Condition of Any Order

County Law § 722-c compensates authorized services "within the limits prescribed by law." Respondent does not ask this Court to fix a specific dollar figure in this motion. Respondent respectfully requests that any order granting this motion authorize compensation up to whatever cap is currently prescribed by law, with the amount confirmed on the record or in the order itself.

V. WHEREFORE

WHEREFORE, Respondent respectfully requests that this Court:

1. find, pursuant to County Law § 722-c, that expert services — specifically, a forensic risk-assessment evaluation addressed to the independent "threat to public safety" finding Correction Law § 168-l(6) requires — are necessary, and that Respondent is financially unable to obtain them;

2. authorize funds for Respondent to retain a qualified forensic risk-assessment expert, with compensation up to the limit currently prescribed by County Law § 722-c;

3. seal this motion, all supporting papers, and any order granting or denying it, pursuant to Judiciary Law § 2-b(3) and 22 NYCRR 216.1, upon the good-cause finding requested above, so that the fact and substance of any evaluation Respondent obtains remain confidential unless and until Respondent elects to use it; and

4. grant such other and further relief as the Court deems just and proper.

Dated: [____], 2026
Rochester, New York

Respectfully submitted,

Jeffrey Bernecky
Respondent, Pro Se
312 Lake Ave #7
Rochester, NY 14608
(585) 202-7634

**State of New York
Monroe County Supreme & County Courts**

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In re: Matter of the Application for a
Risk Level Determination Pursuant to
Article 6-C of the Correction Law.
(Sex Offender Registration Act) as to:

Index No: None Provided by Clerk
Hearing Date: September 11, 2026
Before: Hon. Karen Bailey Turner, J.C.C.

JEFFREY BERNECKY,
NYSID No. OS6430

**DEMAND FOR DISCLOSURE AND,
IF NECESSARY, SUBPOENA DUCES
TECUM**

Respondent, Pro Se.

-----X

(Pursuant to Correction Law § 168-n(3))

I. RELIEF SOUGHT

Respondent demands disclosure, pursuant to Correction Law § 168-n(3), of the materials itemized below — everything the Board of Examiners of Sex Offenders or the District Attorney has relied upon, or intends to rely upon at the September 11, 2026 hearing, in support of the recommended classification. To the extent any demanded material is not voluntarily provided, Respondent requests that this Court issue a subpoena duces tecum directed to the state or local record-holder in possession of it.

II. STATEMENT OF FACTS

By cover memorandum dated July 23, 2026, the New York State Board of Examiners of Sex Offenders ("the Board") forwarded to Respondent a recommendation package consisting of a Risk Assessment Instrument, a four-page Case Summary, and a Sex Offender Designation Form (collectively, the "Board's Recommendation Package"), recommending that Respondent be classified a Risk Level Three offender and designated a Predicate Sex Offender.

The Case Summary repeatedly characterizes and paraphrases the contents of a federal Presentence Investigation Report ("PSR") from Respondent's 2012 conviction (Docket No. 6:11-

CR-06045), a federal PSR from his 2018 conviction (Docket No. 6:18-CR-06018-DGL-MWP), and a Board Position Statement dated June 1, 2012, none of which was provided to Respondent along with the Board's Recommendation Package. The Case Summary does not identify, by page or paragraph, which portions of either PSR its factual assertions are drawn from anywhere in its four pages. The Case Summary also describes a May 2017 sexual-history polygraph re-test and its results, without providing the underlying polygraph materials.

A genuine dispute exists concerning the determinations reflected in the Board's Recommendation Package, including, among other things, the reliability of Case Summary content sourced from the federal PSRs and the accuracy of specific factual assertions drawn from them, including the disputed volume figures attributed to the 2012 conviction. This dispute triggers Correction Law § 168-n(3)'s disclosure-and-subpoena mechanism.

III. STATUTORY BASIS

Correction Law § 168-n(3) requires that, "[a]t least twenty days prior to the determination proceeding, the sentencing court shall notify the district attorney, the sex offender and the sex offender's counsel, in writing, of the date of the determination proceeding and shall also provide the district attorney, the sex offender and the sex offender's counsel with a copy of the recommendation received from the board and any statement of the reasons for the recommendation received from the board."

The statute further provides: "Where there is a dispute between the parties concerning the determinations, the court shall adjourn the hearing as necessary to permit the sex offender or the district attorney to obtain materials relevant to the determinations from the state board of examiners of sex offenders or any state or local facility, hospital, institution, office, agency, department or division. Such materials may be obtained by subpoena if not voluntarily provided to the requesting party." Correction Law § 168-n(3).

This demand is also grounded in the foundation *People v. Mingo* itself requires before an unattributed hearsay assertion in a case summary may be given weight at a SORA hearing. Reliable

hearsay is admissible at a SORA hearing only where "a reasonable person would deem it trustworthy," and where a specific assertion is challenged, the proponent must establish that reliability "either through a pre-hearing affirmation, an offer of proof, or by testimony from a witness with knowledge of the internal procedures." *People v. Mingo*, 12 N.Y.3d 563, 573-74 (2009). Respondent has identified, in his Memorandum of Law in Support of a Level Two Risk Classification, a series of specific Case Summary assertions that lack any pinpoint citation to their claimed federal source and that this record now shows do not match that source in at least some particulars. The materials demanded below are what would let Respondent, or counsel if assigned, either confirm or test each of those assertions against its actual source — and what the People would need to produce in order to lay the *Mingo* foundation those assertions currently lack.

IV. DEMAND

Pursuant to Correction Law § 168-n(3), Respondent demands production of the following, and states that he will seek a subpoena duces tecum for any item not voluntarily provided:

1. The complete Board of Examiners of Sex Offenders recommendation package concerning Respondent, NYSID# OS6430, including all materials the Board reviewed, relied upon, or considered in preparing the Risk Assessment Instrument, Case Summary, and Sex Offender Designation Form dated July 23, 2026, including any record referenced in the Case Summary but not itself produced.

2. The complete federal Presentence Investigation Report prepared in connection with *United States v. Bernecky*, Docket No. 6:11-CR-06045 (W.D.N.Y.) (the "2012 PSR"), or, at minimum, the specific pages or paragraphs of the 2012 PSR that the Board's Case Summary draws from, including the portions describing the volume of files and videos attributed to that conviction and the July 7, 2010 interview referenced in the Case Summary.

3. The complete federal Presentence Investigation Report prepared in connection with *United States v. Bernecky*, Docket No. 6:18-CR-06018-DGL-MWP (W.D.N.Y.) (the "2018

PSR"), or, at minimum, the specific pages or paragraphs of the 2018 PSR that the Board's Case Summary draws from.

4. The Board's Position Statement dated June 1, 2012, referenced in the Case Summary.

5. The 2012 judgment of conviction, Docket No. 6:11-CR-06045.

6. The 2018 judgment of conviction, Docket No. 6:18-CR-06018-DGL-MWP.

7. All polygraph-related materials in the Board's possession concerning Respondent, including any polygraph or re-test report, pretest interview notes, or examiner findings referenced or relied upon in the Case Summary's description of the May 2017 sexual-history polygraph re-test.

8. All communications between the Board and any federal probation office, including the United States Probation Office for the Western District of New York, concerning Respondent, including any communication concerning the transmission to the Board of the 2012 PSR, the 2018 PSR, or any polygraph-related material.

9. Any pre-hearing affirmation, offer of proof, or identification of a witness with knowledge of the internal procedures by which the Case Summary's unattributed factual assertions were developed, to the extent the District Attorney intends to rely on any such assertion at the hearing without producing its underlying source under items 1 through 3 above. *See Mingo*, 12 N.Y.3d at 573-74.

10. Any other material, not already encompassed by items 1 through 9, that the Board or the District Attorney has relied upon or intends to introduce, cite, or rely upon at the September 11, 2026 hearing in support of the recommended classification.

V. SCOPE OF THIS DEMAND

Correction Law § 168-n(3)'s disclosure-and-subpoena mechanism, by its own terms, reaches materials obtainable from "the state board of examiners of sex offenders or any state or local facility, hospital, institution, office, agency, department or division." This demand, and any subpoena sought under it, is directed to the Board and to other state or local record-holders within that description — including, as applicable, the New York State Division of Criminal Justice

Services and the Department of Corrections and Community Supervision — and, as to items within the District Attorney's own possession or control, to the District Attorney directly.

This demand is not, and should not be read as, an application to compel production of records held exclusively by a federal court or a federal probation office. To the extent Respondent seeks the underlying federal sentencing transcripts themselves, or other materials held only in the federal criminal dockets, that relief would require a separate application made directly in those dockets and is not sought by this demand.

VI. WHEREFORE

WHEREFORE, Respondent respectfully requests that this Court:

1. direct the Board of Examiners of Sex Offenders and the District Attorney to voluntarily produce the materials demanded above;

2. to the extent any demanded material is not voluntarily produced, issue a subpoena duces tecum, pursuant to Correction Law § 168-n(3), directed to the Board of Examiners of Sex Offenders and/or any other state or local facility, hospital, institution, office, agency, department, or division in possession of the demanded materials; and

3. grant such other and further relief as the Court deems just and proper.

Dated: [____], 2026
Rochester, New York

Respectfully submitted,

Jeffrey Bernecky
Respondent, Pro Se
312 Lake Ave #7
Rochester, NY 14608
(585) 202-7634